Backlogs: Section XII.A of your agency's Annual FOIA Report, entitled "Backlogs of FOIA Requests and Administrative Appeals" shows the numbers of any backlogged requests or appeals from the fiscal year. You should refer to these numbers from your Annual FOIA Reports for both Fiscal Year 2014 and Fiscal Year 2015 when completing this section of your Chief FOIA Officer Report.

BACKLOGGED REQUESTS

5. If your agency had a backlog of requests at the close of Fiscal Year 2015, did that backlog decrease as compared with the backlog reported at the end of Fiscal Year 2014?

Yes.

6. If not, explain why and describe the causes that contributed to your agency not being able reduce its backlog. When doing so, please also indicate if any of the following were contributing factors:

- An increase in the number of incoming requests.
- A loss of staff.
- An increase in the complexity of the requests received. If possible, please provide examples or briefly describe the types of complex requests contributing to your backlog increase.
- Any other reasons – please briefly describe or provide examples when possible.

Not Applicable.

7. If you had a request backlog please report the percentage of requests that make up the backlog out of the total number of requests *received* by your agency in Fiscal Year 2015.

- To calculate your agency's percentage, you must divide the number of backlogged requests reported in Section XII.A. of your Fiscal Year 2015 Annual FOIA Report by the number of requests received in Fiscal Year 2015, which can be found in Section V.A. of your Annual FOIA Report. Once divided, you can multiply that number by 100 to get the percentage.

5.6%.

BACKLOGGED APPEALS

8. If your agency had a backlog of appeals at the close of Fiscal Year 2015, did that backlog decrease as compared with the backlog reported at the end of Fiscal Year 2014?

Yes.

9. If not, explain why and describe the causes that contributed to your agency not being able reduce backlog.

Not Applicable.

10. If you had an appeal backlog please report the percentage of appeals that make up the backlog out of the total number of appeals *received* by your agency in Fiscal Year 2015. If your agency did not receive any appeals in Fiscal Year 2015 and/or has no appeal backlog, please answer with "N/A."

- To calculate your agency's percentage, you must divide the number of backlogged appeals reported in Section XII.A. of your Fiscal Year 2015 Annual FOIA Report by the number of appeals received in Fiscal Year 2015, which can be found in Section V.A. of your Annual FOIA Report. Once divided, you can multiply that number by 100 to get the percentage.

  2.7%.

Backlog Reduction Plans:

11. In the 2015 guidelines for Chief FOIA Officer Reports, any agency with a backlog of over 1,000 requests in Fiscal Year 2014 was asked to provide a plan for achieving backlog reduction in the year ahead. Did your agency implement a backlog reduction plan last year? If so, describe your agency's efforts in implementing this plan and note if your agency was able to achieve backlog reduction in Fiscal Year 2015.

    Not Applicable.

12. If your agency had a backlog of more than 1,000 requests in Fiscal Year 2015, what is your agency's plan to reduce this backlog during Fiscal Year 2016?

    Not Applicable.

Status of Ten Oldest Requests, Appeals, and Consultations: Section VII.E, entitled "Pending Requests – Ten Oldest Pending Requests," Section VI.C.(5), entitled "Ten Oldest Pending Administrative Appeals," and Section XII.C., entitled "Consultations on FOIA Requests – Ten Oldest Consultations Received from Other Agencies and Pending at Your Agency," show the ten oldest pending requests, appeals, and consultations. You should refer to these numbers from your Annual FOIA Reports for both Fiscal Year 2014 and Fiscal Year 2015 when completing this section of your Chief FOIA Officer Report.

TEN OLDEST REQUESTS

13. In Fiscal Year 2015, did your agency close the ten oldest requests that were reported pending in your Fiscal Year 2014 Annual FOIA Report?

    Yes.

14. If no, please provide the number of these requests your agency was able to close by the end of the fiscal year, as listed in Section VII.E of your Fiscal Year 2014 Annual FOIA Report. If you had less than ten total oldest requests to close, please indicate that.

    - For example, if you only had seven requests listed as part of your "ten oldest" in Section VII.E. and you closed six of them, you should note that you closed six out of seven "oldest" requests.

    Not Applicable.

15. Of the requests your agency was able to close from your ten oldest, please indicate how many of these were closed because the request was withdrawn by the requester. If any were closed because the request was withdrawn, did you provide any interim responses prior to the withdrawal?

The ten oldest requests that GSA were able to close were all processed to completion and none were withdrawn by the requester.

TEN OLDEST APPEALS

16. In Fiscal Year 2015, did your agency close the ten oldest appeals that were reported pending in your Fiscal Year 2014 Annual FOIA Report?

Yes.

17. If no, please provide the number of these appeals your agency was able to close by the end of the fiscal year, as listed in Section VII.C.(5) of your Fiscal Year 2014 Annual FOIA Report. If you had less than ten total oldest appeals to close, please indicate that.

- For example, if you only had seven appeals listed as part of your "ten oldest" in Section VII.C.(5) and you closed six of them, you should note that you closed six out of seven "oldest" appeals.

Not Applicable.

TEN OLDEST CONSULTATIONS

18. In Fiscal Year 2015, did your agency close the ten oldest consultations that were reported pending in your Fiscal Year 2014 Annual FOIA Report?

Yes.

19. If no, please provide the number of these consultations your agency was able to close by the end of the fiscal year, as listed in Section XII.C. of your Fiscal Year 2014 Annual FOIA Report. If you had less than ten total oldest consultations to close, please indicate that.

- For example, if you only had seven consultations listed as part of your "ten oldest" in Section XII.C. and you closed six of them, you should note that you closed six out of seven "oldest" consultations.

Not Applicable.

Additional Information on Ten Oldest Requests, Appeals, and Consultations & Plans:

20. Briefly explain any obstacles your agency faced in closing its ten oldest requests, appeals, and consultations from Fiscal Year 2014.

The main obstacle GSA faced in closing the ten oldest requests/appeals/consultations was the voluminous nature of the oldest requests. These requests were mostly requests for large data sets, reports and/or a large amount of agency correspondence, which included retrievals from the GSA email system. These email retrievals take significant time to pull, review, redact and respond. The majority of these ten oldest requests also involved gathering this information for multiple GSA Program Units across the Nation and coordinating a consistent and thorough response for the requester.

21. If your agency was unable to close any of its ten oldest requests because you were waiting to hear back from other agencies on consultations you sent, please provide the date the request was initially received by your agency, the date when your agency sent the consultation, and the date when you last contacted the agency where the consultation was pending.

Not Applicable.

22. If your agency did not close its ten oldest pending requests, appeals, or consultations, please provide a plan describing how your agency intends to close those "ten oldest" requests, appeals, and consultations during Fiscal Year 2016.

Not Applicable.

Interim Responses:

23. Does your agency have a system in place to provide interim responses to requesters when appropriate? *See OIP Guidance*, "The Importance of Good Communication with FOIA Requesters." (Mar. 1, 2010)

Yes, GSA has a process and system active to provide interim responses to requesters as appropriate. FOIAonline allows agencies to release requested records as they become available and are cleared for release. Multiple releases of records in response to a single request are described as “interim” releases which can be made at any time. Any release of records must follow the agency’s review configuration, which may include a minimum number of reviewers that are different than the person assigned the request. This feature helps enforce a process to ensure records are adequately reviewed prior to their release.

24. If your agency had a backlog in Fiscal Year 2015, please provide an estimate of the number or percentage of cases in the backlog where a substantive, interim response was provided during the fiscal year, even though the request was not finally closed.

For the small backlog GSA had in Fiscal Year 2015, approximately 5% of cases in the backlog had a substantive, interim response was provided during the fiscal year, even though the request was not finally closed.

Use of the FOIA's Law Enforcement Exclusions

1. Did your agency invoke a statutory exclusion, 5 U.S.C. § 552(c)(1), (2), (3), during Fiscal Year 2015?

No.

2. If so, please provide the total number of times exclusions were invoked.

Not Applicable.

Success Story

Out of all the activities undertaken by your agency since March 2015 to increase transparency and improve FOIA administration, please briefly describe here at least one success story that you would like to highlight as emblematic of your agency's efforts. The success story can come from any one of the five key areas. As noted above, these agency success stories will be highlighted during Sunshine Week by OIP. To facilitate this process, all agencies should use bullets to describe their success story and limit their text to a half page. The success story is designed to be a quick summary of key achievements. A complete description of all your efforts will be contained in the body of your Chief FOIA Officer Report.

GSA FOIA successes since March 2015 have centered around increasing proactive postings and increasing transparency and proactive reporting on agency operations. Much of this are attributed to the migration and implementation of the FOIAonline system. The implementation of this system application has significantly increased transparency and overall improvement of FOIA administration.

A recent review from the National Security Archive of a Federal government-wide performed e-FOIA audit, found that most Federal agencies continue to fall short on mandates for online records. GSA was found to not be one of these, and in fact was recognized in the review as a FOIA "E-Star". Only 17 of the 99 agencies that are subject to FOIA were in fact recognized with this top honor based on the audit. GSA was recognized in this review by making past requests and releases searchable electronically via FOIAonline, and by making proactive postings to various other agency websites a routine activity.

By using the FOIAonline applications the general public can create user accounts, directly submit FOIA requests to all participating agencies, as well as search for requests that have already been submitted by and issued to other requesters. FOIAonline also allows for more transparency for the requesters to see the status of their requests and allows access to already previously released records.

Overall FOIA response times are decreasing, the accuracy of releases are increasing, and the access to real time status updates on specific FOIA requests are only a couple mouse clicks away from our requesters. FOIAonline is directly benefiting the general public by improving the timeliness and ease to which we are able to get the information to our customers. FOIAonline is also enabling GSA to more efficiently and effectively support the Open Government Initiative principles of transparency, participation and collaboration.

*10(ae)	1998 Incentive Equity Plan (incorporated by reference to the Company's Registration Statement on Form S-8 (Registration No. 333-61911) filed with the Securities and Exchange Commission on August 20, 1998).
10(af)	Amendment No. 8, dated as of January 29, 1999, to the GECC Loan Agreement (incorporated by reference to Exhibit 10(af) to the Company's Annual Report on Form 10-K for the year ended January 2, 1999).
*10(ag)	Amendment to the Nonemployee Directors Stock Option Plan effective as of February 25, 1999 (incorporated by reference to Exhibit 10(ag) to the Company's Annual Report on Form 10-K for the year ended January 2, 1999).
10(ah)	Amendment No. 9, dated as of February 7, 2000, to the GECC Loan Agreement (incorporated by reference to Exhibit 10(ah) to the Company's Annual Report on Form 10-K for the year ended January 1, 2000).
*10(aj)	Amendment to The Lamson & Sessions Co. Nonemployee Directors Stock Option Plan (as amended and restated as of April 23, 1999) (incorporated by reference to the Company's Registration Statement on Form S-8 (Registration No. 333-93251) filed with the Securities and Exchange Commission on December 21, 1999).
*10(ak)	First Amendment to The Lamson & Sessions Co. Amended and Restated Supplemental Retirement Agreement, effective January 1, 2000 (incorporated by reference to Exhibit 10(ak) to the Company's Annual Report on Form 10-K for the year ended January 1, 2000).
*10(al)	Amendment No. 2 to The Lamson & Sessions Co. Nonemployee Directors Stock Option Plan, effective January 1, 2000 (incorporated by reference to Exhibit 10(al) to the Company's Annual Report on Form 10-K for the year ended January 1, 2000).
*10(am)	Amendment No. 3 to The Lamson & Sessions Co. 1988 Incentive Equity Performance Plan, effective January 1, 2000 (incorporated by reference to Exhibit 10(am) to the Company's Annual Report on Form 10-K for the year ended January 1, 2000).
*10(an)	Amendment No. 1 to The Lamson & Sessions Co. Long-Term Incentive Plan, effective January 1, 2000 (incorporated by reference to Exhibit 10(an) to the Company's Annual Report on Form 10-K for the year ended January 1, 2000).
*10(ao)	Amendment No. 1 to The Lamson & Sessions Co. 1998 Incentive Equity Plan, effective January 1, 2000 (incorporated by reference to Exhibit 10(ao) to the Company's Annual Report on Form 10-K for the year ended January 1, 2000).
*10(ap)	Amendment to The Lamson & Sessions Co. 1998 Incentive Equity Plan (as Amended and Restated as of April 28, 2000) (incorporated by reference to the Company's Registration Statement on Form S-8 (Registration No. 333-51330) filed with the Securities and Exchange Commission on December 6, 2000).
21	Subsidiaries of the Registrant, filed herewith.
23	Consent of Independent Auditors, filed herewith.
24	Powers of Attorney, filed herewith.

ITEM - # 10.
DIRECTORS AND OFFICERS OF THE REGISTRANT

DIRECTORS

Table No. 6 lists, as at 1/20/03, the names of all the Directors of the Company. The Directors generally serve in their respective capacities from their election on the day of the Annual General Meeting of the Company held in January 2000 and will serve until the next Annual General Meeting or until a successor is duly elected, unless the office is vacated in accordance with the Articles of the Company. Casual vacancies on the Board of Directors are filled by the remaining Directors and the persons filling those vacancies hold office until the next Annual General Meeting at which time they may be re-elected or replaced. The Company distinguishes its directors into two groups, “Executive Directors” and “Non-Executive Directors”. Executive Directors are those directors who also serve as Executive Officers employed under contract for such service by the Company. Non-Executive Directors are those directors who do not serve also as Executive Officers of the Company and have not contractual relationship with the Company for personal services outside those of being a director. At the end of Fiscal 2002 and at 1/20/03 the Company has three Non-Executive directors, Mr. Wine, Mr. Barker and Mr. Lichman and two Executive Directors Mr. McAdoo and Mr. Schell.

Table No. 6
Directors

Name	***Age***	***Date First Appointed a Director***
Gary R. Schell (1) (5)	69	February 1993
Gary Wine (1)	47	May 1997
Richard L. McAdoo (2) (4)	48	January 1999
Lawrence Barker, Jr. (3) (4) (5)	82	October 1999
Stan Lichman (1) (4) (5)	56	July 2001

Notes:

(1) Resident and citizen of Canada.
(2) Resident of Indonesia and citizen of the United States.
(3) Resident and citizen of the United States.
(4) Members of the Audit Committee of the Board of Directors.
(5) Members of the Executive Compensation Committee of the Board of Directors.

DIRECTORS COMMITTEES

Audit Committee - The board of directors has created an “Audit Committee” and duly appointed executive director McAdoo and non-executive directors Barker and Lichman to serve on the committee for Fiscal 2002. The Audit Committee is charged with the responsibility of coordinating, reviewing and working with the Company’s auditors with respect to the annual fiscal year end audit. Mr. McAdoo serves as the committee’s chairman.

Compensation Committee - The board of directors has created a “Compensation Committee” and duly appointed executive director Schell and non-executive directors Barker and Lichman to serve on the committee. The Audit Committee is charged with the responsibility to review and recommend contracts and terms of compensation to be paid to Company management. Mr. Schell serves as the committee’s chairman.

RESUME OF DIRECTORS

Richard L. McAdoo holds a Bachelors degree in Geology and Masters degrees in Geophysics from Texas Tech University; and a Masters degree in Business Administration from Boston University. He is registered as a Certified Petroleum Geologist by the American Association of Petroleum Geologists. Actively involved in the international oil exploration and production business for the last 24 years, Mr. McAdoo has held a variety of technical and management positions in exploration and production for Mobil Oil Company, Phillips Petroleum Company, Jackson Exploration, Inc., Triton Energy Corporation, Tracer Petroleum Company, and others in many regions including the North Sea, Middle East, Africa, South America, FSU and Asia. Mr. McAdoo is currently a director, President and CEO of Apex Bengara and Apex Yapen. Prior to their acquisition by the Company Mr. McAdoo held a direct and an indirect share holding interest in both Apex Bengara and Apex Yapen.

Lawrence Barker has had a remarkable career in the international oil business and although unofficially retired is still actively involved in consulting from his San Francisco base. He is a 1942 graduate of Yale with a degree in mathematics. After a short wartime engagement as a meteorology officer in the US Army, he studied geology and petroleum engineering at UCLA/USC before embarking on a career as an independent oil producer in California, Colorado, Texas, Louisiana and Montana. Today he remains active as a producer of oil and gas and also a director and shareholder of a small private company with activity and some production in California and Texas. With other oilmen in 1963, he founded the Independent Indonesian American Petroleum Company (IIAPCO) and he served as its President and CEO until 1971. IIAPCO signed the first ever Production Sharing Contract in Indonesia in 1966 for an unexplored and rank wildcat area offshore Java. A second contract area adjacent to the first was signed in 1968. Substantial discoveries were made on both of IIAPCO's contracts with cumulative oil production from the two areas to date about 3 billion barrels. IIAPCO merged with Natomas and Mr. Barker became a director of that company in 1971. After several other mergers and acquisitions the Natomas share of the two offshore Java contract areas acquired by fledgling IIAPCO are today still in production and operated by MAXUS, formerly of Dallas but now owned by YPF, the Argentine oil company, and Repsol, the Spanish oil company. Mr. Barker's string of successful Indonesian enterprises continued until 1992 with his participation in the development of fields in the Salawati Basin, Irian Jaya, which have today produced over 500 million barrels.

Gary R. Schell is a professional engineer with over thirty years experience in resource exploration and development. He holds a bachelors degree in Mechanical Engineering from the University of Saskatchewan. He was the founder and President of Jet Energy Corp., Geoquest Resource Corporation, Tylox Resources Inc. and Tracer Petroleum Corporation, all resource companies with a significant focus in the oil and gas sector.

Gary D. Wine is a professional geologist and member of the American Association of Petroleum Geologists as well as the Canadian Society of Petroleum Geologists. He holds a bachelors degree in Geology from University of British Columbia. From 1978 to 1997 Mr. Wine held various positions with the Norcen group of companies, including exploration manager - Argentina, senior geologist responsible for prospect generation and regional studies in Northern Alberta and project geologist for Norcen's permits in Malaysia, Indonesia and Papua New Guinea.

Stan Lichman is a financial services professional and owner operator of an independent financial consultant and tax advisory business with offices in Toronto and Vancouver.

EXECUTIVE OFFICERS

Table No. 7 lists, as at 1/20/03, the names of all of the Executive Officers of the Company. Executive Officers are appointed the Board of Directors and hold office indefinitely at the pleasure of the Board of Directors. The term “Executive Officers” includes and is limited to those Company employees who are members of management who are either President, Vice President, Secretary, Treasurer or Chairman of the Company or of any one or more of the Company’s majority or wholly owned subsidiaries.

Table No. 7
Executive Officers

Name	*Age*	*Current Title*	*Date First Appointed a Director*
Richard L. McAdoo (1)	48	President	November 1999
Gary R. Schell (2)	69	Chairman & Secretary	February 1993
James C. Haebig (3)	67	Director of Subsidiary	April 1999
Craig Doctor (4)	37	VP Investor Relations	April 2000

Notes:

(1) He is also President/CEO/Director of the Company’s Indonesian subsidiaries: Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd. and has served as such since the Company’s acquisition of these subsidiaries in August 1998 He spends substantially full time on the affairs of the Company and its subsidiaries. He is based in and resident in Jakarta, Indonesia, and is employed under contract to both Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd.

(2) He was President of the Company from April 1993 until November 1999 when he resigned as President and was elected Chairman of the board of directors and was appointed Secretary; he resigned as Secretary in December 2000 and was reappointed Secretary in July 2001. He spends substantially full time on the affairs of the Company. He is based in and resident in Vancouver, BC, Canada, and is employed under full time contract to the Company.

(3) He is not a director or officer of the Company, but he is a director, vice president and also Chief Geophysicist for the Company’s majority owned subsidiaries Apex (Bengara-II)Ltd. and Yapen Ltd. and for reporting purposes in this annual report he is considered to be an Executive Officer. He spends substantially full time on the affairs of the Company. He is a resident of Jakarta, Indonesia, and is employed under contract to both Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd.

(4) Based in and resident in Vancouver, BC, Canada, and employed under full-time contract to the Company. In December 2001 he resigned his office of Vice President and his full-time employment with the Company. As of the record date of this report he is negotiating with the Company for a part-time employment arrangement in the same capacity.

Orders - No Director or Executive Officer has been the subject of any order, judgment, or decree of any governmental agency or administrator or of any court of competent jurisdiction, revoking or suspending for cause any license, permit or other authority of such person or of any corporation of which he is a Director and or Executive Officer, to engage in the securities business or in the sale of a particular security or temporarily or permanently restraining or enjoining any such person or any corporation of which he is an officer or director from engaging in or continuing any conduct, practice, or employment in connection with the purchase or sale of securities, or convicting such person of any felony or misdemeanor involving a security or any aspect of the securities business or of theft or of any felony. During the past 10 years, no director, officer or promoter of the Company has been the subject of any penalties or sanctions by a court or securities regulatory authority related to the trading in securities, promotion or management of a publicly traded Company, or theft or fraud, except Richard L. McAdoo, who, as an officer of Triton Indonesia, Inc. ("Triton Indonesia"), consented, without admitting or denying allegations made in a civil complaint filed against Triton Energy Corporation (the US parent of Triton Indonesia), Mr. McAdoo and other officers of that company by the US Securities and Exchange Commission, to the entry of a Final Judgment permanently enjoining him from violating the anti-bribery provision and the internal control and books and records provisions of the Foreign Corrupt Practices Act and the Securities Exchange Act of the United States.

Multiple Directorships - Gary Schell is also a Director of Module Resources Incorp., a CDNX traded public company also involved in oil and gas exploration and development. While the Executive Officers and Directors of the Company are involved in other business ventures and may not spend full time on the affairs of the Company, the Company believes that each devotes as much time to the affairs of the Company as are required to satisfactorily carry out their duty.

Arrangements & Relationships - There are no family relationships between any two or more Directors or Executive Officers. There are no arrangements or understandings between any two or more Directors or Executive Officers, pursuant to which anyone was selected as a Director or Executive Officer.

ITEM - # 11.
COMPENSATION OF OFFICERS AND DIRECTORS

COMPANY DIRECTOR COMPENSATION

The Company does not provide cash compensation its Directors for their service in their capacity as Directors. Directors are entitled to reimbursement for reasonable travel and other out-of-pocket expenses incurred in connection with attendance at meetings of the Board of Directors. The Board of Directors may award special remuneration to any Director undertaking any special services on behalf of the Company other than services ordinarily required of a Director. Other than indicated below no Director received any compensation for his services as a Director of the Company, including committee participation and/or special assignments. During Fiscal 2002, the Company did not pay or accrue any salary, fees or other cash compensation directly or indirectly to any director of the Company solely for their services as directors to the Company. Refer to ITEM-#13.

Non-Executive Director Compensation

Non-Executive Directors are those directors not paid for their service as a director and also not employed or paid by the Company in any capacity such as officer or consultant.

Larry Barker, Non-Executive Director During Fiscal 2002, Mr. Barker served as a Non-Executive Director of the Company and is not entitled to cash compensation for such services. The Company did not pay any cash compensation of any kind to Mr. Barker during Fiscal 2002 does not expect to pay any cash compensation to Mr. Barker for his current services as a Non-Executive Director during Fiscal 2003. See ITEM-#12 for his stock options.

Stan Lichman, Non-Executive Director During Fiscal 2002, Mr. Lichman served as a Non-Executive Director of the Company and is not entitled to cash compensation for such services. The Company did not pay any cash compensation of any kind to Mr. Lichman during Fiscal 2002 does not expect to pay any cash compensation to Mr. Lichman for his current services as Non-Executive Director during Fiscal 2003. See ITEM-#12 for his stock options.

Gary Wine, Director and formerly Geological Consultant During Fiscal 2000, Mr. Wine received cash compensation of C$17,900 indirectly, through GDW Consulting, a private firm owned by Mr. Wine, for geological evaluation and consulting services performed directly for the Company under written contract to the Company. The services contract was terminated in October 1999. Since the termination, the Company has not paid any cash compensation to Mr. Wine for his services as a Non-Executive director and does not expect to pay any cash compensation for the next fiscal year. See ITEM-#12 for his stock options.

Executive Director Contracts

Executive Directors are those directors who are directly or indirectly employed by the Company and serving as paid officers, advisors or employees of the Company in addition to their unpaid service as a director. The following directors have contracts with the Company or its affiliates and are Executive Directors. All contracts with the Company for directors, officers and senior management are reviewed by the Compensation Committee.

Gary Schell, Director and Chairman The Board of Directors, acting on the recommendation of the Compensation Committee, has approved and authorized signature of a renewed annual employment contract dated 08/01/02 with Milner Downs Equestrian Centre Ltd. (a company controlled by Mr. Schell) for the personal services of the Company's Chairman and Secretary, Mr. Gary R. Schell to provide executive management and corporate administrative services in the Company's Langley headquarters office. The contract provides for a salary of CDN $ 10,000 (US$ 6,500) per month.

Richard McAdoo, Director and President The Board of Directors, acting on the recommendation of the Compensation Committee, has approved and authorized signature of a renewed annual employment contract dated 08/01/02 with and for the Company's President, Mr. Richard L. McAdoo to provide executive management from the Company's affiliates' Jakarta office. Under the contract, the Company does not pay any direct salary to Mr. McAdoo but does provide for reimbursement of actual personal family medical insurance premiums. Instead Mr. McAdoo is compensated for his services under direct contract to the Company's joint venture subsidiaries Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd. pursuant to separate annually renewable personal consulting service agreements in the amounts of US$ 7,500 (since 08/01/98) and US$ 2,500 (beginning 01/01/01 and ending 8/31/02) per month respectively. However, Mr. McAdoo's contract and consulting service fees for Continental Energy Yapen Ltd. were terminated effective 8/31/02 in accordance with the farm out of the Yapen Property.

Executive Director Compensation

The compensation of executives of the Company is reviewed by the Compensation Committee and set by a vote of the Board of Directors.

Gary Schell, Director and Chairman During Fiscal 2002/2001/2000, Mr. Schell was paid Canadian dollar cash compensation by the Company indirectly through Milner Downs, respectively, CDN$75,000, CDN$60,000, and CDN$60,000 for his personal services as an Executive Officer of the Company. Commencing 01/01/00 Mr. Schell has been paid or accrued a monthly fee of US$ 1,000 for his personal services rendered as a director to each Indonesian joint venture subsidiary, Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd. The Company's pays only its 60% joint venture share of all compensation paid by its joint venture subsidiaries to Mr. Schell.

Richard McAdoo, Director and President At end Fiscal 2000 Mr. McAdoo has not been paid or accrued any cash compensation directly from the Company for his services as an Executive Director and Officer of the Company. Instead Mr. McAdoo is compensated for his services under direct contract to the Company's two joint venture subsidiaries Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd. pursuant to separate annually renewable personal consulting service agreements in the amounts of US$ 7,500 (since 8/01/98) and US$ 2,500 (since 1/01/01) per month respectively. However, Mr. McAdoo's contract and consulting service fees for Continental Energy Yapen Ltd. were terminated effective 8/31/02 in accordance with the farm out of the Yapen Property. See "Note on Compensation of Executive Officers by Indonesian Subsidiaries" below. Mr. McAdoo was directly paid or accrued from Apex (Bengara-II) Ltd., salary compensation of US $90,000 for the years ended Fiscal 2002/2001/2000 and from Continental Energy Yapen Ltd., salary compensation of US $30,000, US $17,500, and nil for the same years respectively. The Company's pays only its 60% joint venture share of all compensation paid by its joint venture subsidiaries to Mr. McAdoo.

EXECUTIVE OFFICER COMPENSATION

The Company employs all of its Executive Officers under direct written contract with the Company and or one or more of its subsidiaries. All Executive Officers are contracted on a full time employment basis and are prohibited from engaging in paid employment from third party's who are also engaged in the oil and gas business. During Fiscal 2002, the Company paid or accrued, directly or indirectly salary or other cash compensation totaling CDN$36,000 and US$ 72,000 to two Executive Officers as follows:

Craig Doctor, Vice President Mr. Doctor was employed indirectly by the Company under full time contract to perform investor relations services during Fiscal 2002 through his personal company Doc's Consulting Ltd. During Fiscal 2002/2001/2000 he was paid or accrued CDN$36,000, CDN$36,000 and CDN$36,000 respectively for his services.

James C. Haebig, Director and Officer of Subsidiary At end Fiscal 2002 Mr. Haebig has not been paid or accrued any cash compensation directly from the Company for his services as an Executive Director and Officer of the Company's subsidiaries. Instead Mr. Haebig is compensated for his services under direct contract to the Company's two joint venture subsidiaries Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd. pursuant to separate annually renewable personal consulting service agreements in the amounts of US$ 7,500 (since

1/01/98) and US$ 2,500 (since 1/01/01) per month respectively. However, Mr. Haebig's contract and consulting service fees for Continental Energy Yapen Ltd. were terminated effective 8/31/02 in accordance with the farm out of the Yapen Property. Mr. Haebig was directly paid or accrued from Apex (Bengara-II) Ltd., salary compensation of US $90,000 for each of the years ended Fiscal 2002/2001/2000 and from Continental Energy Yapen Ltd., salary compensation of US $30,000, US $17,500 and nil for the same fiscal years respectively. The Company's pays only its 60% joint venture share of all compensation paid by its joint venture subsidiaries to Mr. Haebig.

Note on Compensation of Executive Officers by Indonesian Subsidiaries

During Fiscal 2002 three of the Company's Executive Officers also serve as directors of both the Company's 60% owned Indonesian Joint Venture Subsidiaries, "Indo JV Subs", namely Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd. Two Executive Officers, Mr. McAdoo and Mr. Haebig, reside in Jakarta, and are also serving officers of the Indo JV Subs in the capacities of President and Vice President Geophysics respectively. Both also personally provide individual geological, geophysical and management services to each of the Indo JV Subs principally at the Jakarta offices. Such personal services are provided under annually renewable service agreements with each Indo JV Sub. All compensation paid to the Executive Officers by the Indo JV Subs is shared in the proportion of 40% by the Company's Indo JV partners and 60% by the Company.

This treatment of his compensation enables the two joint venture subsidiaries to charge the full amount of his compensation against the respective PSC work commitment and also qualify the entire amount of compensation for reimbursement by Pertamina from oil production as cost recovery as and when commercial production is established. The Company indirectly pays 60% of Mr. Haebig's and Mr. McAdoo's compensation by virtue of its funding its joint venture obligations to both Apex (Bengara-II) Ltd. and Continental Energy Yapen Ltd. The Company's joint venture partner, GeoPetro Resources Company, pays the other 40% of their salaries.

The entire amount of the compensation paid by the Company's Indo JV Subs for personal consulting and management services provided by some of the Company's Executive Officers (and of their own employees and consultants) is expected to 1) qualify and count towards fulfillment of the respective Indo JV Subs' obligatory exploration work expenditure commitment under its Production Sharing Contract ("PSC") with Pertamina and 2) is also expected to qualify as "cost recovery" pursuant to the respective Indonesian production sharing contracts and thereby be reimbursed in full to the Company at some future time. The full amount of such accumulated compensation costs may be recovered by the Indo JV Subs from future petroleum production revenues in accordance with the cost recovery provisions of the respective production sharing contracts in the event that commercial petroleum production is achieved.

Stock Options

The Company does grant incentive stock options to Directors and to Officers and employees; refer to ITEM-#12, "Options to Purchase Securities from Registrant or Subsidiaries". All stock options are set at levels determined from time to time by the board of directors in accordance with applicable securities regulations.

Pension Plans & Stock Ownership Programs

No funds were set aside or accrued by the Company during Fiscal 2002 to provide pension, retirement or similar benefits for Directors or Executive Officers. Except for the stock option program discussed in ITEM-#12, the Company has no material bonus or profit sharing plans pursuant to which cash or non-cash compensation is or may be paid to the Company's Directors or Executive Officers.

Termination Compensation

The Company has no plans or arrangements in respect of remuneration received or that may be received by Executive Officers of the Company in Fiscal 2002 to compensate such officers in the event of termination of employment (as a result of resignation, retirement, change of control) or a change of responsibilities following a change of control, where the value of such compensation exceeds $100,000 per Executive Officer. No Executive Officer/Director received other compensation in excess of the lesser of US$25,000 or 10% of such officer's cash compensation, and all Executive Officers/Directors as a group did not receive other compensation which exceeded US$25,000 times the number of persons in the group or 10% of the compensation.

ITEM - # 12.

OPTIONS TO PURCHASE SECURITIES FROM REGISTRANT OR SUBSIDIARIES

Incentive Stock Options to purchase securities from the Company can be granted only to Directors, Officers, employees and consultants and Employees of the Company in accordance with applicable securities regulations. All optionees other than directors and officers must be employees or consultants or subcontractors engaged under written contract by the Company. The Company has no formal written stock option plan in place as of the date of this Annual Report. At 1/20/03, the Company had 5,630,000 stock options outstanding entitling the holders to purchase 5,630,000 common shares at a price of $0.15. The names and titles of the Directors and Executive Officers of the Company to whom outstanding stock options have been granted and the number of common shares subject to such options are set forth in Table No. 8, also effective as at 1/20/03, as well as the number of options granted to them as a group. Outstanding options to other employees and consultants as a group is also shown.

Table No. 8
Stock Options Outstanding

Name of Optionee Directors & Officers	US$ Option Exercise Price	Date Option Expires	Number of Options	Percent Of Total
Gary Schell	$0.15	7/30/04	1,000,000	------
Gary Schell	$0.15	4/29/04	400,000	25.0%
Richard McAdoo	$0.15	7/30/04	900,000	16.0%
James Haebig	$0.15	7/30/04	635,000	11.3%
Gary Wine	$0.15	7/30/04	200,000	3.5%
Lawrence Barker	$0.15	7/30/04	100,000	------
Lawrence Barker	$0.15	4/29/04	100,000	3.5%
Stan Lichman	$0.15	7/30/04	100,000	------
Stan Lichman	$0.15	4/29/04	100,000	3.5%
Total Directors & Officers as a Group			3,535,000	62.8%
Total Employees & Consultants as a Group			2,095,000	37.2%
Total Stock Options Outstanding at 1/20/03			**5,630,000**	**100.0%**

At 1/20/03, the Company had 15,490,606 share purchase warrants outstanding entitling the holders to purchase 15,490,606 common shares at prices between US$0.15 and CDN$0.70. All of the share purchase warrant issued by the Company have been issued in conjunction with private placements of Company securities or loans as incentive consideration to the placee or lender. Table No. 9 lists, also as at 1/20/03 share purchase warrants outstanding, the date the share purchase warrants were issued, the exercise price, and the expiration date of the share purchase warrants.

Table No. 9
Share Purchase Warrants Outstanding

			Warrant Exercise Price US$ As Currently Amended & Exercisable			
Date Warrants Issued	Number of Warrants Originally Issued	Number of Warrants As Amended & Still Outstanding	First Year	Second Year	Third Year or As Revised	Date Warrants Expire
9/10/02	5,408,000	4,656,666	$ 0.15	$0.30	$ 0.60	9/10/05
7/23/02	1,305,000	1,112,000	$ 0.15	None	None	7/23/03
7/19/02	500,000	500,000	$ 0.15	$0.30	$ 0.60	7/19/05
7/18/02	1,621,840	1,621,840	$ 0.15	None	None	7/18/03
9/21/00	4,923,000	4,923,000	*Revised*	*Revised*	$0.15	7/30/03
6/22/00	1,829,332	1,096,000	*Revised*	*Revised*	$0.15	7/30/03
3/01/00	350,000	185,000	*Revised*	*Revised*	$0.15	1/31/03
10/12/99	605,600	605,600	*Revised*	*Revised*	$0.15	7/30/03
11/24/99	500,000	500,000	*Revised*	*Revised*	CDN$0.70	11/24/04
8/11/99	290,000	290,000	*Revised*	*Revised*	$0.15	7/30/03
	Total	**15,490,606**	**Outstanding at 1/20/03**			

ITEM - # 13.
INTEREST OF MANAGEMENT IN CERTAIN TRANSACTIONS

The following are the only transactions since 8/1/00, or proposed transactions, which have materially affected or will materially affect the Company in which any director, officer, or beneficial holder of more that 10% of the outstanding common shares, or any of their respective relatives, spouses, associates or affiliates has had or will have any direct or material indirect interest. Management believes the transactions referenced below were on terms at least as favorable to the Company as it could have obtained from unaffiliated parties.

Richard L. McAdoo, President/Director - During fiscal 2002 but effective from 8/01/00 the Company closed it's purchase of the Bangkudulis property; see ITEM-#1, "Acquisition/Disposition of Principal Properties". At the effective date of the sale, Dimensions West Energy, Inc., the seller of the Bangkudulis property, and the Company shared a common director, Richard McAdoo, who up until his resignation on 1/30/01 was also President and a director of the seller. Mr. McAdoo declared his conflict of interest and abstained from voting as a director of both the Company and the seller with regard to the Bangkudulis Acquisition. Up until his resignation from the seller's board in January 2000 preceding the sale effective date, the Company also shared a second director, Gary Schell with the seller. Neither Mr. McAdoo nor Mr. Schell have or expect to have any personal beneficial interest in the contemplated transaction other than that of being shareholders.

Lawrence J. Barker, Jr., Non-executive Director - During Fiscal 2000, the Company farmed out a 40% interest in both its Apex (Bengara-II) Ltd. property and its Continental Energy Yapen Ltd. property to a privately held American company, GeoPetro Resources Company of San Francisco. See "ITEM-#1, "Acquisition/Disposition of Principal Properties". At the time of the farm out Mr. Barker was a director of both the Company and GeoPetro. Mr. Barker did not participate in the negotiations and did not personally receive any personal material benefit or compensation from either the Company or GeoPetro as a result of the farm out.

P A R T - II
ITEM - # 14.
DESCRIPTION OF SECURITIES TO BE REGISTERED

Debt Securities to be Registered.
This Form-20F filing is made as an annual report and matters ordinarily required to be disclosed pursuant to this sub-heading of this ITEM-#14 are not applicable. A description of the Company's currently registered securities is made in ITEM-#4, ITEM-#5 and ITEM-#12.

American Depository Receipts.
This Form-20F filing is made as an annual report and matters ordinarily required to be disclosed pursuant to this sub-heading of this ITEM-#14 are not applicable. A description of the Company's registered securities is made in ITEMS#4, #5 and #12.

Other Securities to be Registered.
This Form-20F filing is made as an annual report and matters ordinarily required to be disclosed pursuant to this sub-heading of this ITEM-#14 are not applicable. A description of the Company's registered securities is made in ITEMS-#4, #5 and #12.

P A R T - III
ITEM - # 15.
DEFAULTS UPON SENIOR SECURITIES

This Form-20F filing is made as an annual report and matters ordinarily required to be disclosed pursuant to this ITEM-#15 are not applicable.

ITEM - # 16.
CHANGES IN SECURITIES AND CHANGES IN SECURITY FOR REGISTERED SECURITIES

This Form-20F filing is made as an annual report and matters ordinarily required to be disclosed pursuant to this ITEM-#16 are not applicable. A description of the Company's currently authorized, issued, outstanding and registered securities is made in ITEMS-#4, #5 and #12.

P A R T - IV
ITEM - # 17.
FINANCIAL STATEMENTS

For its 7/31/02 year-end reporting, and all subsequent reporting, the Company adopted the U.S. currency as its reporting currency and has prepared its financial statements on that basis. Accordingly, all prior years' figures presented have been recast in the U.S. currency through a "translation of convenience" whereby all amounts appearing are restated from Canadian to U.S. currency using the exchange rate prevailing at 7/31/01. The accounts of the Company are now prepared in U.S. funds and the Company's Canadian operations are translated into U.S. dollars under the temporal method. The Company's financial statements are prepared in accordance with Canadian Generally Accepted Accounting Principles (GAAP), the application of which, in the case of the Company, conforms in all material respects for the periods presented with US GAAP, except as disclosed in footnotes to the financial statements.

AUDITORS
The Company's auditors are Staley Okada & Partners (formerly Staley, Okada, Chandler & Scott), ("SOAP") Chartered Accountants, of Surrey, British Columbia, Canada. SOAP or its predecessor firm has been the Company's auditors since the Company's incorporation in 1984. SOAP has been a member of the Institute of Chartered Accountants of British Columbia since 1962. The firm is also a member of the Canadian Institute of Chartered Accountants. In addition, two SOAP partners are qualified American CPA's in good standing in the states of Illinois and Washington.

AUDITS, REPORTING, FINANCIAL STATEMENTS AND THEIR APPLICABILITY
The Company prepares annual audited consolidated financial statements as at its year end date of 31 July. These consolidated financial statements include the accounts of the company and its majority owned subsidiaries. During the course of the Company's fiscal year management prepares unaudited quarterly consolidated financial statements as at 31 October, 31 January and April 30 which are filed with British Columbia Securities Commission within 60 days of the quarter's end.

ELECTRONIC FILING AT THE SEDAR WEBSITE
The Company makes continuous financial and corporate information disclosure as well as statutory filings with Canadian securities regulators on the internet at the "SEDAR" website www.sedar.com. SEDAR is the "System for Electronic Document Archiving and Retrieval" employed by Canadian securities regulatory commissions to enable publicly traded companies to electronically file and archive documents and filings in compliance with applicable laws and securities trading regulations. The Company began filing electronically on SEDAR in 1997.

STATEMENT ON AGE OF FINANCIAL STATEMENTS
The audited financial statements included pursuant to this ITEM-#17 are effective as at the Company's Fiscal 2002 year end at 7/31/02. The cut-off Date of the auditors report for the same Fiscal 2002 financial statements is 12/06/02. The Record Date of this Form-20F annual report is 1/20/03. The actual electronic filing of this Form-20F report and its Exhibits, including the Fiscal 2002 financial statements, on EDGAR is scheduled for 1/24/03. Elapsed time between the fiscal year end effective date of the financial statements and the effective date of the auditors report is 128 days. Elapsed time between the fiscal year end effective date of the financial statements and the Record Date of this report is 168 days.

FINANCIAL STATEMENTS ATTACHMENT & INDEX

The auditors report and audited financial statements as required under ITEM-#17 are included attached hereto, are incorporated herein and are found immediately following the text and Exhibits of this Form-20F Annual Report starting on page 81 and continuing as shown in the table of contents following.

Consolidated Financial Statements
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ITEM - # 18.
FINANCIAL STATEMENTS

The Registrant has elected to provide its financial statements pursuant to ITEM-#17.

ITEM - # 19.
EXHIBITS

INDEX TO EXHIBITS

The following Exhibits are incorporated herein this Form-20F and are attached hereto following the signatures below at the page number indicated on the following index:

ATTACHED EXHIBITS TITLE & CONTENTS	***Page***
Exhibit-1: **Certificate, Memorandum & Articles of Incorporation**	**48**
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Exhibit-11D: Supplemental Schedules to Financial Statements - Audited at End Fiscal Year 2002 7/31/02	**86**

COPIES & DISTRIBUTION

This Form-20F annual report and its Exhibits, including the audited financial statements at Fiscal 2002 year end 7/31/02, was submitted for filing electronically on the US-SEC's EDGAR system on 1/24/03.

SIGNATURES

The registrant hereby certifies that it meets all of the requirements for filing on Form 20-F and that it has duly caused and authorized the undersigned to sign this Form-20F Fiscal 2002 year end 7/31/02 annual report on its behalf.

Continental Energy Corporation
(Registrant)

"*Gary R. Schell*"

By: Gary R. Schell
Director & Chairman of the Board
Record Date: January 20, 2003

E X H I B I T S 1 THROUGH 11
To The Us-Sec Form-20f For Fiscal 2002 Ended 7/31/02 Filed In January 2003 By
CONTINENTAL ENERGY CORPORATION

E X H I B I T - 1 : **CERTIFICATE, MEMORANDUM & ARTICLES OF INCORPORATION.**

Materials required to be filed under this Exhibit-1 are incorporated into this Annual Report Form-20F filing by this reference. Exhibit-1 consists of those copies of the Company's certificate of incorporation, certificates of name changes, memorandum of incorporation, and articles of association already filed with the US-SEC under cover of previous filings made with the US-SEC by the Company including but not limited to the most recently filed Form-20F Annual Report for the Company's last fiscal year (as amended), Form-20F Annual Report filings for previous years; and any information filed as part of a Form-6K periodic filings of material changes, news, contracts or events affecting the Company.

E X H I B I T - 2 : **SHAREHOLDERS RIGHTS INSTRUMENTS**

The disclosure required to be filed under this Exhibit-2 is incorporated into this Annual Report Form-F filing by the following reference. Exhibit-2 disclosure consists of the same materials referred to and incorporated by reference under Exhibit-1 above. All instruments defining rights of holders of Company securities instruments are therein described or presented in their entirety. A statement commenting upon shareholder rights instruments issued by the Company relative to the date of this annual report is also set forth in the body of this Form-20F within ITEM-#4 under the section entitled "Shareholders Rights Instruments".

E X H I B I T - 3 : **VOTING TRUSTS**

The disclosure required to be filed under this Exhibit-3 is incorporated into this Annual Report Form-F filing by the following reference. Exhibit-3 disclosure consists of the same materials referred to and incorporated by reference under Exhibit-1 above and/or under Exhibit-4 below. Any share voting trusts, pooling agreements or similar agreements regarding collaborative voting of the Company's shares are therein described or presented in their entirety. A statement commenting upon voting trusts known to the Company relative to the date of this annual report is also set forth in the body of this Form-20F within ITEM-#4 under the section entitled "Voting Trusts".

E X H I B I T - 4 : **MATERIAL CONTRACTS**

Materials required to be filed under this Exhibit-3 is incorporated into this Annual Report Form-F filing by this reference. Exhibit-3 consists of those copies of the Company's material contracts already filed with the US-SEC under cover of previous filings made with the US-SEC by the Company (as amended); including, but not limited to, the most recently filed Form-20F Annual Report for the Company's last fiscal year, Form-20F Annual Report filings for previous years; and any information filed as part of a Form-6K periodic filings of material changes, news, contracts or events affecting the Company.

E X H I B I T - 5 : **FOREIGN PATENTS**

The Company does not have any foreign patents. The Company has never registered any foreign patents in the past and does not contemplate registering any foreign patents in the future.

E X H I B I T - 6 : **STATEMENT HOW EARNINGS PER SHARE CALCULATED**

The disclosure required to be filed under this Exhibit-6 is incorporated into this Annual Report Form-F filing by the following reference. A statement commenting upon how earnings per share are calculated is set forth in the body of this Form-20F within ITEM-#8 under the section entitled "How Earnings Per Share Are Calculated".

E X H I B I T - 7 : **STATEMENT HOW REPORTED RATIOS ARE CALCULATED**

The disclosure required to be filed under this Exhibit-7 is incorporated into this Annual Report Form-F filing by the following reference. A statement commenting upon how any ratio of earning to fixed charges, any ratio of earnings to combined fixed charges and preferred stock dividends or any other ratios in the registration statement or report is set forth in the body of this Form-20F within ITEM-#8 under the section entitled "How Reported Ratios Are Calculated".

E X H I B I T - 8 : **SUBSIDIARIES**

The disclosure required to be filed under this Exhibit-8 is incorporated into this Annual Report Form-F filing by the following reference. The identity and relationship of the registrant as parent company and its subsidiaries is set forth in the body of this Form-20F within ITEM-#1 under the section entitled “Subsidiaries”.

E X H I B I T - 9 : **STATEMENT ON AGE OF FINANCIAL STATEMENTS**

The disclosure required to be filed under this Exhibit-9 is incorporated into this Annual Report Form-F filing by the following reference. A statement commenting upon the age of the attached audited financial statements of the Company relative to the date of this annual report is set forth in the body of this Form-20F within ITEM-#17 under the section entitled “Statement on Age of Financial Statements”.

E X H I B I T – 10A : GLOSSARY

To The Us-Sec Form-20f For Fiscal 2002 Ended 7/31/02 Filed In January 2003 By
CONTINENTAL ENERGY CORPORATION

PART–“A” : TECHNICAL TERMS DEFINITIONS

The meaning of certain technical words, terms and phrases commonly used in the oil and gas industry and also used in the above referenced filing are described in the glossary below. Described terms are capitalized below and throughout the reference filing only when capitalized in standard usage.

Condensate	Liquid hydrocarbons at atmospheric pressure and temperature which are condensed out of and recovered from natural gas production. Condensate typically has a high gravity and if recovered in sufficient quantities it can be sold at a premium to crude oil. If recovered in low quantities insufficient to justify the cost of separate handling it is commonly ‘spiked’ into and mixed with crude oil production.
DHI	A DHI is a Direct Hydrocarbon Indication. A seismic DHI is a specific type of “seismic anomaly” widely accepted by the petroleum exploration industry to be a seismically derived direct indication of the actual presence of hydrocarbons, especially gas. Examples of seismic DHI include bright spots, flat spots and gas chimneys. Another example of a DHI is the presence of naturally occurring oil and gas seepage observed currently or historically at a specific land or seabed location or encountered in old wells or diggings.
Drillable Prospect	"Prospects" are commonly sub-classified as "Drillable Prospect" ("DP") when in the opinion of the geologist and geophysicist making the determination, no further seismic or geological supporting investigation is necessary and the prospect is ready for drilling. Prospects not classified as drillable are legitimate potential drilling targets which require some additional element of confidence building investigation and substantiation prior to being elevated to "drillable prospect" status.
Dry Hole	Any wellbore drilled but found to be incapable of producing crude oil or natural gas in a quantity sufficient to justify completion as an oil or gas production well.
Exploration Well	A well that is designed to test for and to confirm the presence of hydrocarbons.
Hydrocarbons	Complex chemical compounds in which hydrogen and carbon are predominant; in the oil and gas industry, usually synonymous with petroleum and meant to include both crude oil and natural gas.
Indonesian Crude Price or “ICP”	An index price of Indonesian crude oil used in the Indonesian oil and gas industry.
Lead	A "lead" is promising geological or seismic indication of a potential petroleum resource that may, subject to additional investigation, develop into a drilling target or prospect. A lead may be an interesting geological feature, an event observed on seismic, an anomaly recognized on remote sensing data, from surface geological field work and/or from geochemical or geophysical surveys which, subject to further investigation, definition and quantification may be upgraded to a prospect or even a "play".
LNG	Liquefied Natural Gas, generally limited to liquefied methane and produced from natural gas by application of external industrial processing after first removing natural gas liquids.
LPG	Liquefied Petroleum Gas, generally restricted to propane and butane extracted from natural gas by application of an external industrial process.

50% of Net Earnings collected by Contractor from Marketplace product sales and 75% of service sales are payable to the Company. The Company's portion of Net Earnings will be calculated and paid net-30 from the end of each quarter (March 30, June 30, September 30, and December 31) by Contractor to Company. Each payment of Company's portion of Net Earnings shall be accompanied by a statement that details the calculation of Net Earnings for the applicable quarter, and such statement shall be reasonably satisfactory to Company, in both form and substance. In addition to any other rights or remedies available to Company under the Agreement, at law or in equity, any late payments or underpayments of Net Earnings due to Company shall accrue interest at a rate equal to the lesser of 1.5% per month or the maximum rate of interest permitted by law from the date due until paid. In no event shall Company's portion of Net Earnings be reduced by any penalties, fines or similar assessments by any taxing authority due to failure to timely pay the correct amount of any taxes or duties contemplated by the definition of "Net Earnings" or any refunds, credits, price adjustments or billing errors contemplated by the definition of "Net Earnings" that are paid to a customer more than 6 months after the date customer remitted payment to Contractor for the applicable product or service, unless such price adjustment is the result of a Company-directed customer resolution.

No less than monthly, Contractor shall deposit and maintain the Company's portion of Net Earnings funds in a dedicated bank account for these Net Earnings funds and this bank account will be in the name of Contractor but explicitly held for the benefit of Company. The funds will be deposited in an interest bearing account and Company shall be entitled to interest earned on this account. Contractor shall provide Company with monthly statements on the balance of the account in the reporting described in section 3.2.5.

Should Company not conduct marketing activities, as agreed in Section 3.5 and subsequently documented, the Company's Margin Share shall decrease to 25% for product sales and 50% for service sales. This is to ensure that the Company participates in marketing and promotion of the marketplace and that all incentives are aligned.

8. Assumptions

As this is a Software-as-a-Service contract, notwithstanding anything to the contrary in this SOW, Contractor will not provide any software to Company hereunder, and Company does not require or receive a license to any software under this SOW.

Continuous Development. Contractor may continually develop, deliver and provide ongoing innovation to the technology used in the CEMP in the form of new features, functionality, capabilities and services. Accordingly, Contractor reserves the right to modify the CEMP from time to time to align product to enhanced version and product functionality. Releases that impact the end user experience or Company's

Integration with the CEMP will be reviewed and approved by the Company prior to being deployed to the production environment. Minor changes that do not impact the end user experience or Company's integration points to CEMP can be deployed by the Vendor at any time.

Some modifications will be provided to Company at no additional charge. In the event Contractor adds additional functionality to the CEMP, Contractor may condition the implementation of such modifications on Company's payment of additional fees, and Company will not be entitled to such new functionality unless Company pays such fees. In the event that implementation of such modifications is conditional upon Company's payment of additional fees, Company will have the option to avoid implementation of such modifications and pay no fees. Pricing for added modifications and functionality will be negotiated on a case-by-case basis between Contractor and Company.

In no event shall Contractor be responsible for any delays resulting from Company's failure to promptly provide the consents or approvals required hereunder. In the event of any such delay, Contractor's time for performance shall be extended one day for each day that Company fails to provide the required consent or approval.

Third-Party Service Providers. Subject to the requirements of the Agreement regarding subcontracting, Contractor shall be permitted to enter into an arrangement with one or more third party service providers to fulfill Contractor's obligations hereunder. Contractor will provide reasonable notification to Company of any changes in responsibilities to be handled by third parties in advance.

Contractor's pricing to implement the Program is based on a timely start and completion of tasks and subtasks. Contractor and Company project team will work cooperatively so that tasks/subtasks are completed successfully on time. The parties shall each be excused for any delay in performance hereunder arising from a cause beyond its control which it could not by the exercise of due diligence have avoided, including force majeure events (as described in the Agreement), actions taken or feedback issued by the Public Service Commission or its staff or the party's inability to perform caused solely by the other party's act or failure to act in breach of the Agreement. In the foregoing instances, the excused party's time of performance shall be extended by a period equal to the time lost by reason of the excusable delay. Such extension shall be a party's sole and exclusive remedy for such excused delay.

Project schedules, tasks, costs and deliverables are based on Company and Contractor's mutual understanding of the Program scope and objectives.
Company's technical staff will be familiar with existing systems, software tools, and components of technical architecture.

Company will commit adequate subject matter experts to the team to support Program timelines and provide the level of detail required to complete the Program, as mutually determined by Contractor and Company. Contractor will escalate any subject matter resource availability issues to Company for immediate resolution. Subject Matter experts from the following categories will participate in the project:

- Measurement & Verification
- Energy Efficiency and Rebate Program Management
- Information Technology
- Customer Service
- Marketing and Public Relations

Company will be available to provide inputs and review of the Program. In addition, Company stakeholders, as referenced above, will actively participate and make decisions, as required within five business days unless both parties mutually agree upon a different timeline.

Company management will actively participate in planning and execution activities as required (i.e., working sessions/meetings and deliverable reviews) and in defined steering committee meetings.

Company-provided customer information (for example, name, account number, address, and phone) will be maintained in the proper Company system of record system and any updates will be made on the Company system of record and not in the Contractor platform. For example, if a customer updates an email address in the CEMP, that email address will not be automatically updated in Company's Billing System.

Since the Company does not have AMI rolled out to the customer base, the CEMP will present monthly usage data to customer. Once AMI is deployed, the Company and Contractor will agree on how the AMI data will be used to further enhance the CEMP.

10. Confidentiality & Non-Disclosure Agreement

This SOW incorporates the confidentiality provisions of the Agreement.

11. Travel

All travel and meal expenses shall be the responsibility of the Contractor. Whenever possible, conference calls and video conferencing (when available and cost effective) should be used.

GLOSSARY OF TERMS

Certain capitalized terms used in this SOW shall have the meanings set forth or cross-referenced below.

1 "***Access Term***" means the period of time that Designated Customers will have access to the Platform.
2 ***"Activation"*** shall mean the process by which a Designated Customer logs in to the Platform for the first time
3 "***Brand***" means any one or more of the trademarks, service marks, trade names, domain names, logos, business and product names, slogans, and registrations and applications for registration thereof owned by the respective party as of the effective date and provided hereunder.
4 **"Business Days"** refers to any day of the week, Monday through Friday, that is not New Years Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Day after Thanksgiving Day, and Christmas Day as observed by the US Federal Government.
5 **"Business Hours"** refers to 9am to 5pm Eastern Time Monday through Friday. Business hours are not in effect during the New Years Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Day after Thanksgiving Day, and Christmas Day
6 ***"Customers"*** refers to any residential customer of the Company in its New York service territory who shall have access to the Marketplace component of the CEMP.
7 "***Content***" means any data, results, ideas, plans, sketches, texts, files, links, images, photos, video, sound, inventions (whether or not patentable), notes, works of authorship, articles, feedback, or other materials, including, without limitation, statistics, analyses and forecasts, and any similar information that is either owned or licensed by Contractor and that Contractor makes available through the Services.
8 "***Control Group***" shall mean a statistically relevant portion of Eligible Customers selected in coordination with the Company's independent measurement and verification provider for the purposes of measurement and verification, as mutually agreed by Company and Contractor. Company and Contractor will mutually agree to a statistically relevant number of customers to be included outside of the Designated Customers to ensure the ability to measure comparative results between targeted and non-targeted customer groups.
9 ***"Designated Customer"*** means an eligible Company customer for whom messaging is generated and who shall have access to the CEMP and be a participant in the Treatment Group.
10 "***Documentation***" means text and/or graphical materials, whether in print or electronic form, that describe the features, functions and use of those Services accessed through the Platform, which materials are designed to facilitate use of the Platform.

Two sets are required for the LPC and two sets for DDC of:

a. Final Construction Documents shall be signed and sealed, and include specifications.

b. One set of material and color samples as well as related product literature and specifications is required.

7. Notice of Compliance from LPC
At the end of the construction phase, LPC will issue a Notice of Compliance for all projects under their purview. This is a requirement by the Department of Buildings before their final sign-off. The Consultant shall submit to DDC final photographs of all work that affected any of the protected features of the landmark structure or site. DDC will forward these photographs to LPC with a request for issuance of a Notice of Compliance. The Consultant shall also submit to DDC and LPC as-built drawings for any portions of the work that deviate from the LPC-approved drawings. After determining that all of the work was completed in accordance with the approved plans and specifications as well as any amendments to the approval, LPC will issue the Notice of Compliance.

E. VALUE ENGINEERING

The Task Order or Project Objectives will specify if Value Engineering studies or workshops will be conducted for a particular project and, if so, how many and at what phases. Typically the Office of Management and Budget (OMB) designates complex projects with an estimated construction value in excess of thirty million dollars for such analysis.

1. Participation
The Consultant shall participate in a maximum of three Value Engineering studies to be performed by a Value Engineering Consultant team engaged by the City under separate contract through OMB.

a. Phases
The Consultant shall fully cooperate with the Value Engineering Consultant and shall supply all requested data during each of these studies. Value Engineering Studies may be conducted at the conclusion of Pre-Preliminary Design, Schematic Design, or Design Development.

b. Workshop Data
As part of each study, the Value Engineering Consultant will conduct a workshop lasting a maximum of five consecutive days. Prior to each study, background data will be needed. The Consultant shall make every effort to comply with requests for data and supply necessary materials in a timely manner.

c. Orientation Meeting
The Consultant’s technical personnel will meet with the Value Engineering Consultant, OMB, and DDC so as to allow the Value Engineering Consultant to explain the study process. In addition, the Value Engineering Consultant will review the role, activities and responsibilities of the Consultant and the City in relation to the study process

(2) A procurement entity may request suppliers or contractors to extend the period of validity for an additional specified period of time *before the expiry of the period of validity of tenders.*[60]

(3) A supplier or contractor may refuse the request without forfeiting its tender security and the effectiveness of its tender will terminate upon the expiry of the unextended period of effectiveness.

(4) A supplier or contractor that agrees to an extension of the period of effectiveness of its tenders shall extend or procure an extension of the period of tender securities provided by it or provide new tender securities to cover the extended period of effectiveness of its tender.

(5) A supplier or contractor whose tender security is not extended or that has not provided a new tender security is considered to have refused the request to extend the period of effectiveness of its tender.

(6) A supplier or contractor may modify or withdraw its tender prior to the deadline for the submission of tenders without forfeiting its tender security unless otherwise stipulated in the tender documents.

(7) The modification or notice of withdrawal is effective if it is received by the procurement entity before the deadline for the submission of tenders.

Tender securities

55. (1) The procurement entity shall specify the principal terms and conditions of the required tender security in the invitation documents.

(2) When the procurement entity requires suppliers or contractors submitting tenders to provide tender security,

(a) the requirement shall apply to each supplier or contractor;

(b) the invitation documents shall stipulate that the issuer and confirmer of the tender security are acceptable to the procurement entity;

(c) despite paragraph *(b)*, a tender security shall not be rejected by the procurement entity on the grounds that the tender security was not issued by an issuer in the country, if the tender security and the issuer otherwise conform to requirements in the invitation documents;

[60] Added by section 26 of the Public Procurement (Amendment) Act, 2016 (Act 914).

(d) a supplier or contractor may request the procurement entity to confirm the acceptability of a proposed issuer or a proposed confirmer of a tender security before submitting a tender and the procurement entity shall respond promptly to the request;

(e) confirmation of the acceptability of a proposed issuer or of a proposed confirmer does not preclude the procurement entity from rejecting the tender security on the ground that the issuer or confirmer has become insolvent or is otherwise not creditworthy.

(3) A requirement on tender security that refers directly or indirectly to conduct by the supplier or contractor submitting the tender may only relate to

(a) withdrawal or modification of the tender after the deadline for submission of tenders, or before the deadline if stipulated in the invitation documents;

(b) failure to sign the procurement contract if required by the procurement entity to do so;

(c) failure to provide a required security for the performance of the contract after the tender has been accepted or to comply with any other condition precedent to signing the procurement contract specified in the tender documents.

(4) The procurement entity shall not make a claim to the amount of the tender security and shall promptly return or procure the return of the tender security document after whichever of the following occurs first

(a) the expiry of the tender security;

(b) the entry into force of a procurement contract and the provision of security for the performance of the contract, if the security is required by the invitation documents;

(c) the termination of the tendering proceedings without the entry into force of a procurement contract; or

(d) the withdrawal of the tender prior to the deadline for the submission of tenders.

Evaluation and Comparison of Tenders

Opening of tenders

56. (1) Tenders shall be opened

(*a*) at the time specified in the tender documents as the deadline for the submission of tenders or at the deadline specified in any extension of the deadline; and

(*b*) at the place and in accordance with the procedures specified in the tender documents.

(2) The time for opening of the tenders shall be the same as the deadline for receipt of tenders or promptly after that deadline.

(3) A supplier or contractor who has submitted a tender or a representative of that supplier or contractor, shall be permitted by the procurement entity to be present at the opening of tenders.

(4) The name and address of each supplier or contractor whose tender is opened and the tender price shall be announced to those present at the opening of tenders and communicated on request to a supplier or contractor who has submitted a tender but is not present or represented at the opening of the tenders.

(5) The tender price shall be recorded immediately in the record of tendering proceedings.

Examination of tenders

57. (1) The procurement entity may ask a supplier or a contractor for clarification of its tender *in writing*[61] in order to assist in the examination, evaluation and comparison of tenders.

(2) A change in a matter of substance in the tender, including changes in price and changes aimed at making an unresponsive tender responsive, shall not be sought, offered or permitted.

(3) Despite subsection (2), the procurement entity shall correct purely arithmetical errors that are discovered during the examination of tenders.

(4) The procurement entity shall give prompt notice of the correction to the supplier or contractor that submitted the tender.

Responsiveness of tenders

58. (1) A procurement entity shall regard a tender as responsive if it conforms to the requirements set out in the tender invitation documents.

(2) The procurement entity may, however, regard a tender as responsive if it contains minor deviations that do not materially alter or depart from the characteristics, terms, conditions and other requirements set

[61] Inserted by section 27 of the Public Procurement (Amendment) Act, 2016 (Act 914).

out in the invitation documents or if it contains errors or oversights that are capable of being corrected without touching on the substance of the tender.

(3) The deviations shall be quantified, to the extent possible, and shall be taken into account in the evaluation and comparison of tenders.

(4) A procurement entity shall not accept a tender

(a) if the supplier or contractor that submitted the tender is not qualified;

(b) if the tenderer that submitted the tender does not accept a correction of an arithmetical error made under *section 57(3)*;[62]

(c) if the tender is not responsive; or

(d) in the circumstances referred to in section 32 with respect to inducement from a tenderer.

Evaluation of tenders

59. (1) The procurement entity shall evaluate and compare the tenders that have been accepted in order to ascertain the successful tender in accordance with the procedures and criteria set out in the invitation documents.

(2) The evaluation criteria relating to the subject matter of the procurement shall include

(a) the price;

(b) the cost of operating, maintaining and repairing goods and the functional characteristics of the goods;

(c) the time for delivery of goods;

(d) the costs of construction and the functional characteristics of the construction;

(e) the completion of construction;

(f) the cost of the provision of services;

(g) the environmental and other characteristics of the subject matter of the procurement;

(h) the terms of payment of the procurement;

(i) the guarantees in respect of the subject matter; and

(j) any other matter the procurement entity considers relevant to the procurement.

(3) The evaluation criteria shall also include

(a) any criteria authorised or required to be taken into account by the procurement regulations and any other enactment; and

[62] Substituted by section 28 of the Public Procurement (Amendment) Act, 2016 (Act 914).

(b) a margin of preference for the benefit of a domestic supplier or for domestically produced goods or any other preference authorised or required by procurement regulations or any other enactment.

(4) The procurement entity shall set out in the tender documents

(a) whether the successful tender will be determined on the basis of price or price and other criteria;

(b) the evaluation criteria in pursuance of this section, including the price as modified by any preference;

(c) the relative weights of the evaluation criteria; and

(d) the manner of application of the criteria in the evaluation procedure.

(5) A procurement entity shall use only the criteria and procedures in the tender documents and shall apply criteria and procedures in the manner disclosed in the tender documents.[63]

(6)[64] A criterion shall not be used that has not been set out in the invitation documents.

(7)[65] The successful tender shall be

(a) the tender with the lowest evaluated tender price; and

(b) the lowest evaluated tender ascertained on the basis of criteria specified in the invitation documents which shall be

(i) objective and quantifiable; and

(ii) given relative weight in the evaluation procedure or expressed in monetary terms where practicable if the procurement entity has so stipulated in the invitation documents.

(8)[66] To determine the lowest evaluated tender, the procurement entity shall consider

(a) the tender price, subject to any margin of preference applied under section 60(2) ;

(b) the cost of operating, maintaining and repairing the goods or works, the time for delivery of the goods, completion of works or provisions of the services, the functional characteristics of

[63] Inserted by paragraph (a) of section 29 of the Public Procurement (Amendment) Act, 2016 (Act 914).
[64] Renumbered by paragraph (b) of section 29 of the Public Procurement (Amendment) Act, 2016 (Act 914).
[65] Renumbered by paragraph (b) of section 29 of the Public Procurement (Amendment) Act, 2016 (Act 914).
[66] Renumbered by paragraph (b) of section 29 of the Public Procurement (Amendment) Act, 2016 (Act 914).

the goods or works, the terms of payment and of guarantees in respect of the goods, works or services;

(c) the effect *that*[67] the acceptance of the tender will have on

(i) the balance of payments position and foreign exchange reserves of the country;

(ii) the countertrade arrangements offered by suppliers or contractors;

(iii) the extent of local content, including manufacturer, labour and materials, in goods, works or services being offered by suppliers or contractors;

(iv) the economic development potential offered by tenders, including domestic investment or other business activity;

(v) the encouragement of employment, the reservation of certain production for domestic suppliers;

(vi) the transfer of technology;

(vii) the development of managerial, scientific and operational skills; and

(d) national security considerations.

Margin of preference

60. (1) A procurement entity may grant a margin of preference for the benefit of tenders for work by domestic contractors or for the benefit of tenders for domestically produced goods or for the benefit of domestic suppliers *of services or any other preference authorised by the Board or required by Regulations or any other enactment.*[68]

(2) The margin of preference shall be calculated in accordance with the procurement regulations and reflected in the record of the procurement proceedings;

(3) The margin of preference shall be authorised by the Board and be subject to approval by the Board.

Multiple currency tender prices

61. When tender prices are expressed in two or more currencies, the tender prices of the total number of tenders shall be converted to the same currency—

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[67] Inserted by paragraph (c) of section 29 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[68] Added by section 30 of the Public Procurement (Amendment) Act, 2016 (Act 914).

according to the rate specified in the invitation documents for the evaluation and comparison tenders.

Repeat tender qualifications

62. (1) The procurement entity may require the supplier or contractor which is the successful tenderer, to demonstrate its qualifications again, whether or not it has engaged in pre-qualification proceedings in accordance with criteria and procedures that conform to section 23 on prequalification proceedings.

(2) The criteria and procedures to be used for the further demonstration shall be set out in the tender documents.

(3) Where pre-qualification proceedings have been used, the criteria for further demonstration shall be the same as those used in the pre-qualification proceedings.

(4) If tenderers have not been pre-qualified, the entity shall determine whether the selected tenderer has the capacity to perform the contract effectively.

(5) The criteria to be met shall be specified in the tender documents and if the selected tender is rejected, the procurement entity shall make a similar determination of the next ranked best evaluated tender.

(6) If the supplier or contractor submitting the successful tender is requested to demonstrate its qualifications again but fails to do so, the procurement entity shall reject that tender and shall select a successful tenderer, in accordance with section 59(4) from among the remaining tenders, subject to the right of the procurement entity to reject the remaining tenders.

Non-disclosure of tender evaluation details

63. Information relating to the examination, clarification, evaluation and comparison of tenders shall not be disclosed to suppliers or contractors or to any other person not involved officially in the examination, evaluation or comparison of tenders or in the decision on which tender should be accepted, except as provided in section 28 on the record of procurement proceedings.

Prohibition of negotiations with suppliers or contractors

64. (1) Subject to the exception in this section, negotiations shall not take place between the procurement entity and a supplier or contractor with respect to a tender submitted by the supplier or contractor.

(2) If the lowest evaluated responsive tender exceeds the budget for the contract by a substantial margin, the procurement entity shall investigate the causes for the excessive cost and may

(a) consider requesting new tenders; or

(b) subject to approval by the relevant Tender Review *Committee*[69] and guidelines issued by that Board, negotiate a contract with the lowest evaluated tenderer to try to obtain a satisfactory contract.

Acceptance of tender and entry into force of procurement contract

65. (1) A tender that has been ascertained to be the successful tender in accordance with this Act shall be accepted and notice of acceptance of the tender shall be given within thirty days of the acceptance of the tender to the supplier or contractor submitting the tender.

(2) Where the tender documents require the supplier or contractor whose tender has been accepted to sign a written procurement contract conforming to the tender, the procurement entity and the supplier or contractor shall sign the procurement contract within thirty days after the notice referred to in subsection (1) is despatched to the supplier or contractor.

(3) Where a written procurement contract is required to be signed, the contract shall enter into force on the commencement date indicated on the contract.

(4) Between the time when the notice is despatched to the supplier or contractor and the entry into force of the procurement contract, neither the procurement entity nor the supplier or contractor shall take an action that interferes with the entry into force of the procurement contract or with its performance.

(5) Except as provided in subsection (2), a procurement contract in accordance with the terms and conditions of the accepted tender enters into force when the notice is despatched to the supplier or contractor that submitted the tender, if it is despatched while the tender is in force.

(6) The notice is despatched when it is properly addressed or otherwise directed and transmitted to the supplier or contractor or conveyed

[69] Substituted by section 31 of the Public Procurement (Amendment) Act, 2016 (Act 914).

to an appropriate authority for transmission to the supplier or contractor in a manner authorised in section 26.

(7) If the supplier or contractor whose tender has been accepted fails to sign a written procurement contract within thirty working days of receipt of the notice of acceptance or fails to provide the required security for the performance of the contract, the procurement entity shall select a successful tender in accordance with section 59 (3) from among the remaining tenders that are in force, subject to the right of the procurement entity to reject the remaining tenders.

(8) The notice provided for in subsection (1) shall be given to the supplier or contractor that submitted the successful tender.

(9) A procurement entity shall give notice of the procurement contract in writing to unsuccessful suppliers and contractors.

(10) The notice shall

(a) specify the name and address of the successful supplier or contractor who has entered into the contract and the contract price;

(b) be given after the commencement of the procurement contract and may include the provision by the supplier or contractor of security for the performance of the contract;

(c) for contracts above the threshold in the Third Schedule, be published in the Public Procurement Bulletin which shall disclose the names of firms or individuals awarded contracts, the start and completion dates, as well as the value of the contracts.

PART SIX

Methods and Procedures to Procure Consultants

Notice of invitation of expressions of interest and preparation of shortlists

66. (1) A procurement entity shall invite consulting services by causing a notice seeking expression of interest in submitting a proposal to be published in the Public Procurement Bulletin for consultancy contracts *in accordance with the Fifth Schedule.*[70]

(2) The notice shall,

[70] Substituted by section 32 of the Public Procurement (Amendment) Act, 2016 (Act 914).

(a) contain the name and address of the procurement entity and a brief description of the services to be procured; and

(b) be published in English and in a newspaper of wide circulation or in a relevant trade or professional publication of wide circulation except where participation is limited solely to national consultants under section 44 (1) or where the procurement entity decides that only national consultants may submit proposals.

(3) Where direct invitation is necessary for economic and efficiency reasons, the procurement entity with the approval of the Board may apply the provisions of subsection (1) and (2) where

(a) the services to be procured are available only from a limited number of consultants, if it invites expressions of interest from all these consultants;

(b) the time and cost required to examine and evaluate a large number of expressions of interest would be disproportionate to the value of the services to be performed, if it invites proposals from enough consultants to ensure effective competition; or

(c) direct invitation is the only means to ensure confidentiality or is required in the national interest, if it invites enough proposals from consultants for effective competition.

Shortlisted candidates

67. (1) The procurement entity is responsible for the preparation of a shortlist of consultants to be considered to participate in the selection process.

(2) The shortlist may comprise only national consultants but shall comprise at least three and not more than six consultants.

(3) The procurement entity shall provide the invitation for proposals to the shortlist of consultants selected on the basis of quality.

(4) The procurement entity shall provide the invitation for proposals to the most qualified or single sourced consultant selected on the basis of the consultant's qualifications.

Content of requests for proposals for consultancy services

68. (1) The procurement entity shall use the standard invitation for proposals stipulated in the *Sixth Schedule*[71] and the requirements for a specific assignment shall be introduced through information to consultants,

[71] Substituted by paragraph (a) of section 33 of the Public Procurement (Amendment) Act, 2016 (Act 914).

data sheets or contract data sheets and not by introducing changes in the standard tender documents.

(2) The invitation for proposals shall include

(a) the name and address of the procurement entity;

(b) the language or languages in which proposals are to be prepared;

(c) the manner, place and deadline for the submission of proposals;

(d) a statement to the effect that the procurement entity reserves the right to reject proposals;

(e) the criteria and procedures related to the evaluation of the qualifications of the consultants and those related to additional qualifications under section 24(5);

(f) the requirements on documentary evidence or other information that shall be submitted by suppliers or contractors to demonstrate their qualifications;

(g) the nature and required characteristics of the services to be procured including the location where the services are to be provided and the time when the services are to be provided;

(h) whether the procurement entity is seeking proposals on various possible ways of meeting its needs;

(i) the currency in which the proposal price is to be expressed;

(j) the manner in which the proposal price is to be expressed, including a statement on whether the price covers elements apart from the cost of services, such as reimbursement for transportation, lodging, insurance, use of equipment, duties or taxes;

(k) the procedure selected under section 71(1) to ascertain the successful proposal;

(l) the criteria to be used to determine the successful proposal, including any margin of preference to be used under *section 60*[72] and the relative weight of the criteria;

(m) the currency that will be used to evaluate and compare proposals and either the exchange rate that will be used for the conversion of proposal prices into that currency or a statement

[72] Substituted by paragraph (b) of section 33 of the Public Procurement (Amendment) Act, 2016 (Act 914).

that the rate published by a specified financial institution prevailing on a specified date will be used;

(n) a statement on alternatives to the characteristics of the consultancy services, contractual terms and conditions or other requirements set out in the invitation for proposals if permitted and a description of the manner in which the alternative proposals are to be evaluated and compared;

(o) the name, functional title and address of one or more officers or employees of the procurement entity who are authorised to communicate directly with and to receive communications directly from consultants in connection with the procurement proceedings, without the intervention of an intermediary;

(p) the means by which consultants may seek clarification on the invitation for proposals and a statement whether the procurement entity intends to convene a meeting of consultants; and

(q) the terms and conditions of the consultancy contract as known to the procurement entity and the contract form to be signed by the parties.

Criteria for the evaluation of proposals

69. (1) The procurement entity shall establish criteria to evaluate the proposals and determine the relative weight to be accorded to each criterion and the manner in which they are to be applied in the evaluation of proposals.

(2) The consultants shall be notified of the criteria in the invitation for proposals and the criteria may deal with the following:

(a) the qualifications, experience, reputation, reliability and professional and managerial competence of the consultant and the personnel to be involved in providing the services;

(b) the effectiveness of the proposals submitted by the consultants in meeting the needs of the procurement entity as specified in section 68(2)*(g)*;

(c) the proposal price, including the ancillary or related costs; and

(i) the effect that the acceptance of a proposal will have on the balance of payments position and foreign exchange reserves of the country;

(ii) the extent of participation by nationals;

(iii) the economic development potential offered by the proposal, including domestic investment or other business activity;

(iv) the encouragement of employment;

(v) the transfer of technology;

(vi) the development of managerial, scientific and operational skills; and

[(vii) Repealed][73]

(d) national security considerations.

(3) A procurement entity may grant additional points for participation by nationals who are key staff in foreign and national firms, and these points shall be calculated in accordance with the procurement regulations and reflected in the record of the procurement proceedings subject to approval by the Board.

Clarification and modification of invitation for proposals

70. (1) A consultant may request clarification of the invitation for proposals from the procurement entity and where that request is made the procurement entity shall

(a) respond to the request within seven working days of the request being made if the request is received by the procurement entity within fourteen working days prior to the deadline for the submission of proposals; and

(b) where the request is made later than fourteen days prior to the deadline for the submission of proposals, respond promptly and early enough to enable the consultant make a timely submission of its proposal and shall, without identifying the source of the invitation, communicate the clarification to the other consultants to whom the procurement entity has provided the invitation for proposals.

(2) A procurement entity may, whether on its initiative or as a result of a request for clarification by a consultant, modify the request for proposals by issuing an addendum at any time prior to the deadline for the submission of proposals.

(3) The addendum shall be communicated promptly before the deadline for the submission of proposals to the shortlisted consultants to

[73] Repealed by section 34 of the Public Procurement (Amendment) Act, 2016 (Act 914).

whom the procurement entity has provided the request for proposals and shall be binding on those consultants.

(4) If the procurement entity convenes a meeting of consultants, it shall prepare minutes of the meeting containing the requests submitted at the meeting for clarification of the request for proposal and its responses to those requests, without identifying the sources of the requests.

(5) The minutes shall be provided promptly before the deadline for the submission of proposals to the consultants participating in the selection proceedings to enable them take the minutes into account in preparing their proposals.

Choice of selection procedure

71. (1) The procurement entity shall use the selection procedure provided for in section 75(6)*(a)*, 75(6)*(b)* or 76 that has been notified to consultants in the invitation for proposals.

(2) The procurement entity shall include in the record required under section 28, a statement of the grounds and circumstances on which it relied to justify the use of a selection procedure under subsection (1).

(3) This Part does not prevent a procurement entity from resorting to an impartial panel of external experts in the selection procedure.

Conditions for use of other methods of selection of consultants

72. (1) A procurement entity may select consultants by quality-based selection for the following types of assignments:

(a) complex or highly specialised assignments, where

(i) it is difficult to define precise terms of reference and the required input from the consultants; and

(ii) the client expects the consultants to demonstrate innovation in their proposals;

(b) assignments that have a high downstream impact where the objective is to have the best experts; and

(c) assignments that can be carried out in substantially different ways where proposals will not be comparable.

(2) A procurement entity may use selection under a fixed budget approved by the Board where the assignment is simple and can be precisely defined.

(3) A procurement entity may use least-cost selection procedures for small value assignments subject to the value threshold in the *Fifth Schedule*[74] where the assignment is of a standard or routine nature and well-established practices and standards exist.

(4) A procurement entity may use selection based on consultants' qualifications for very small value assignments subject to the value threshold in the *Fifth Schedule*[75] where the need to prepare and evaluate competitive proposals is not justified.

(5) The procurement entity may select consultants by inviting proposals from a single consultant where there is

(a) only one eligible consultant;

(b) an emergency as specified in section 40(1)(b) and *(c)*; or

(c) a follow-up assignment.

Receipt of proposals

73. (1) The procurement entity shall allow enough time for the consultants to prepare their proposals.

(2) The time allowed shall depend on the nature of the assignment but shall not be less than four weeks.

(3) To safeguard the integrity of the process, the technical and financial proposals shall be submitted in separate sealed envelopes.

(4) After the closing time for the submission of proposals, the appropriate committee of the procurement entity shall open the technical proposals immediately after the deadline for the submission of proposals.

(5) The financial proposals shall remain sealed until they are opened publicly under section 56.

Evaluation of proposals

74. (1) The evaluation of the proposals shall be carried out in two stages: first the quality, and then the cost.

(2) Evaluators of technical proposals should not have access to the financial proposals until the technical evaluation, *is reviewed and approved by the appropriate approving authority.*[76]

(3) The evaluation shall be carried out in conformity with the provisions in the invitation for proposals.

[74] Substituted by section 35 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[75] Substituted by section 35 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[76] Substituted by paragraph (a) of section 36 of the Public Procurement (Amendment) Act, 2016 (Act 914).

(4) The evaluation panel shall open the financial proposals after the approval of the technical evaluation report by the appropriate approving authority and prepare a final evaluation report for approval by the appropriate entity tender committee.[77]

Selection procedure where price is a factor

75. (1) Where the procurement entity uses the procedure in this section, it shall establish a threshold on the quality and technical aspects of the proposals in accordance with the criteria established under section 69 apart from those set out in the request for proposals and shall rate each proposal in accordance with that criteria and the relative weight and manner of application of those criteria set out in the invitation for proposals.

(2) The procurement entity shall notify the consultants whose proposals did not meet the minimum qualifying mark or were non responsive to the invitation for proposals and terms of reference after the evaluation of quality is completed within a period of fourteen days after the decision has been taken by the procurement entity.

(3) The name of the consultant, the quality scores and the proposed prices shall be read aloud and recorded when the financial proposals are opened.

(4) The procurement entity shall prepare the minutes of public opening of financial proposals which shall be part of the evaluation report and shall retain this record.

(5) The procurement entity shall compare the prices of the proposals that have attained a rating at or above the threshold.

(6) The successful proposals shall be

(a) the proposals with the best combined evaluation in terms of the criteria established under section 69 apart from price in the case of quality and cost-based selection;

(b) the proposals with the lowest price in the case of least-cost selection; or

(c) the consultants that submitted the highest ranked technical proposals within the budget.

(7) The consultants with the winning proposals shall be invited for negotiations, which shall focus mainly on the technical proposals.

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77 Added by paragraph (b) of section 36 of the Public Procurement (Amendment) Act, 2016 (Act 914).

(8) Proposed unit rates for staff-months and reimbursables shall not be negotiated unless there are exceptional reasons.

Selection procedure where price is not a factor

76. (1) Where the procurement entity uses the quality-based selection, selection based on consultant's qualifications or single-source selection, it shall engage in negotiations with consultants in accordance with this section.

(2) The procurement entity shall

(a) establish a threshold in accordance with section 75(1);

(b) invite for negotiations on the price of its proposal, the consultant that has attained the best rating in accordance with section 75(1);

(c) inform the consultants that attained ratings above the threshold that they may be considered for negotiation if the negotiations with the consultant with the best rating do not result in a procurement contract; and

(d) inform the consultant with the best rating, that it is terminating the negotiations if it becomes apparent to the procurement entity that the negotiations with that consultant invited under subsection (2)*(b)*, will not result in a procurement contract.

(3) The procurement entity shall, if negotiations with the consultant with the best rating fails, invite the consultant that obtained the second best rating, and if the negotiations with that consultant do not result in a procurement contract, the procurement entity shall invite the other consultants for negotiations on the basis of their rating until it arrives at a contract or rejects the remaining proposals.

Confidentiality *in selection procedure*[78]

77. (1) The procurement entity shall treat proposals and the negotiations on selection procedure as confidential and avoid the disclosure of their contents to competing consultants.

(2) A party to the negotiations shall not reveal to any other person the technical, price or any other information relating to the negotiations without the consent of the other party.

[78] Added by section 37 of the Public Procurement (Amendment) Act, 2016 (Act 914).

PART SEVEN

Complaints and Administrative [79]Review

Right to complaint or administrative review[80]

78. (1) A supplier, contractor or consultant that claims to have suffered, or that may suffer loss or injury due to a breach of a duty imposed on the procurement entity by this Act, may seek *redress*[81] in accordance with this Part.

(2) Despite subsection (1), the following shall not be subject to the *complaint or administrative review*[82]

(a) the selection of a method of procurement under sections 35 to 43;

(b) the choice of a selection procedure under section 75(6)*(a)*, 75(6)*(b)* or section 76;

(c) the limitation of procurement proceedings in accordance with section 44; and

(d) a decision by the procurement entity under section 29 to reject tenders, proposals, offers or quotation.

(3) A complaint may be made by an application to the procurement entity.

(4) A request for administrative review may be made by an application to the Board.

(5) A tenderer, supplier, contractor or consultant may appeal a decision taken in administrative review in court.[83]

Complaint procedure by procurement entity[84]

79. (1) A complaint shall, in the first instance, be submitted in writing to the head of the procurement entity if the procurement contract has not already entered into force.

(1A) The procurement entity shall not take any step that will bring into force a procurement contract or framework agreement where the entity

(a) receives a complaint within the time limits specified;

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[79] Inserted by section 38 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[80] Substituted by paragraph (a) of section 39 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[81] Substituted by paragraph (b) of section 39 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[82] Substituted by paragraph (c) of section 39 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[83] Added by paragraph (d) of section 39 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[84] Substituted by paragraph (a) of section 40 of the Public Procurement (Amendment) Act, 2016 (Act 914).

(b) receives notice of an application for administrative review from the Board; or

(c) *receives notice of an application to or appeal from court.*[85]

(2) The head of the procurement entity shall not entertain a complaint unless it was submitted within twenty days after the supplier, contractor or consultant submitting it became aware of the circumstances giving rise to the complaint or when that supplier, contractor, or consultant should have become aware of those circumstances, whichever is earlier.

(3) The procurement entity may entertain a complaint or continue to entertain a complaint after the procurement contract has entered into force despite subsection (1).[86]

(4) A procurement entity shall attempt to resolve a complaint by mutual agreement of the supplier or contractor and the procurement entity.

(5) The procurement entity shall, within twenty-one days after the submission of the complaint, issue a written decision.[87]

(5A) The procurement entity may overturn, correct, vary or uphold any decision or action taken by itself in the procurement proceedings to which the application relates but this shall not apply to decisions taken by the Board or the court.[88]

(6) The decision shall

(a) state the reasons for the decision; and

(b) if the complaint is upheld in whole or in part, indicate the corrective measures that are to be taken.

(7) If the procurement entity does not issue a decision by the time specified in subsection (5), the supplier, contractor, or consultant, submitting the complaint is entitled to institute proceedings for administrative review under section 80.[89]

(7A) All decisions taken under this section, shall be in writing and shall state the action taken and the reasons for the decision.

(7B) All decisions taken shall promptly be made part of the record of

[85] Inserted by paragraph (b) of section 40 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[86] Amended by paragraph (c) of section 40 of the Public Procurement (Amendment) Act, 2016 (Act 914) by the deletion of "head of the" in line 1.

[87] Amended by paragraph (c) of section 40 of the Public Procurement (Amendment) Act, 2016 (Act 914) by the deletion of "head of the" in line 1.

[88] Inserted by paragraph (d) of section 40 of the Public Procurement (Amendment) Act, 2016 (Act 914).

[89] Amended by paragraph (c) of section 40 of the Public Procurement (Amendment) Act, 2016 (Act 914) by the deletion of "head of the" in line 1.

the procurement proceedings and shall include the complaint received by the procurement entity under this section.[90]

(8) After the institution of the proceedings *for administrative review under section 80*[91], the competence of the head of the procuring entity to entertain the complaint ceases.

Administrative review

80. (1) A supplier, contractor or consultant entitled to seek administrative review may submit a petition to the Board if

(a) the head of the procurement entity does not entertain the complaint because the procurement contract has entered into force; or

(b) the supplier, contractor, or consultant claims to be adversely affected by a decision of the head of the procurement entity under section 79.

(2) The petition shall be submitted within twenty-one days after

(a) the supplier, contractor or consultant became aware of the circumstances giving rise to the complaint, or

(b) the time when the supplier, contractor or consultant ought to have become aware of those circumstances, if the complaint cannot be submitted under section 79 because of the entry into force of the procurement contract.

(3) On receipt of a complaint, the Authority shall give notice of the complaint promptly to the procurement entity.

(4) The Board may

(a) declare the legal rules or principles that govern the subject-matter of the complaint and address any suspension in force;

(b) order that the provisions of this Act be complied with;

(c) prohibit the procurement entity from acting, taking a decision or following a procedure that is not in compliance with the provisions of this Act;

(d) require the procurement entity that has acted or proceeded in a manner that is not in compliance with the provisions of this Act to take action or make a decision

[90] Inserted by paragraph (e) of section 40 of the Public Procurement (Amendment) Act, 2016 (Act 914).
[91] Inserted by paragraph (f) of section 40 of the Public Procurement (Amendment) Act, 2016 (Act 914).

or proceed in a manner that is in compliance with the provisions of this Act;

(e) overturn in whole or in part an act or decision of the procurement entity that is not in compliance with the provisions of this Act other than an act or decision that brings the procurement contract or framework agreement into force;

(f) revise a decision by the procurement entity that is not in compliance with the provisions of this Act other than any act or decision that brings the procurement contract or framework agreement into force;

(g) confirm a decision of the procurement entity;

(h) require the payment of compensation for reasonable costs incurred by the supplier or contractor who submitted the complaint,

(i) in connection with the procurement proceedings as a result of an act, decision or procedure followed by the procurement entity in the procurement proceedings that is not in compliance with the provisions of this Act, and

(ii) for any loss or damage suffered; which shall be limited to the costs of the preparation of the tender or the costs related to the application or both;

(j) order that the procurement proceedings be terminated;

(k) authorize the procurement entity to enter into the procurement contract or framework agreement where it is satisfied that public interest justifies this;

(l) dismiss the complaint and require the payment of compensation from the complainant for reasonable costs incurred by the procurement entity or the Board.

(5) The Board shall issue a written decision concerning the complaint within twenty-one days after starting an administrative review, stating the reasons for the decision.

(6) The decision of the Board and reasons for the decision shall be made part of the record of procurement proceedings.

(7) Correspondence pertaining to a complaint shall be copied to the Board.

(8) Without limiting this section, the Minister may, in consultation with

the Board by legislative instrument, specify different administrative review procedures for specific sectors or entities.[92]

Certain rules applicable to review proceedings

81. (1) The head of the procurement entity or the Board shall notify the suppliers, contractors, or consultants participating in procurement proceedings about the submission of a complaint and of its substance within fourteen working days after the submission of the complaint for review.

(2) A supplier or contractor or any government authority whose interests are or could be affected by the review proceedings is entitled to participate in the review proceedings.

(3) A supplier, contractor, or consultant who fails to participate in the review proceedings is barred from subsequently making the same type of claim.

(4) A copy of the decision of the head of the procurement entity or of the Board shall be furnished within five days after the issue of the decision to the supplier, contractor, or consultant submitting the complaint to the procurement entity and to any other supplier, contractor or government authority that has participated in the review proceedings.

(5) After the decision has been taken, the complaint and the decision shall be promptly made available for inspection by the general public, but an information shall not be disclosed if its disclosure would be contrary to law, would impede law enforcement, would not be in the public interest, would prejudice legitimate commercial interests of the parties or would inhibit fair competition.

Suspension of procurement proceedings

82. (1) The Authority in administrative review proceedings may

(a) order the suspension of the procurement proceedings at any time before the entry into force of the procurement contract; or

(b) order the suspension of the performance of a procurement contract or the operation of a framework agreement that has entered into force;

for as long as it finds the suspension necessary to protect the interests of the applicant, unless it decides that urgent public interest considerations require the procurement proceedings, the procurement contract or

[92] Substituted by section 41 of the Public Procurement (Amendment) Act, 2016 (Act 914).

framework agreement to proceed; or

(c) order that any suspension applied be extended or lifted.

(2) The Authority shall order the suspension of a procurement proceeding for an initial period of thirty working days or as required under subsection (1).

(3) The Authority shall, upon receipt of an application for administrative review, promptly

(a) suspend or decide not to suspend the procurement proceedings or the performance of a procurement contract or the operation of a framework agreement in accordance with subsection 1(a)and (b);

(b) notify the procurement entity and identified participants of the procurement proceedings to which the application relates, of the application and its substance; and

(c) notify the identified participants of its decision on the suspension of the procurement proceedings to which the application relates.

(4) Where the Authority decides to suspend

(a) the procurement proceedings,

(b) the performance of a procurement contract, or

(c) the operation of a framework agreement,

it shall also specify the period of suspension.

(5) Where the Authority decides not to suspend the procurement, it shall

(a) provide the applicant and procurement entity with the reasons for its decision; and

(b) promptly publish a notice of the application on the website of the Authority when the application for administrative review is received.

(6) The Board may dismiss the application and shall lift any suspension applied, where it decides that:

(a) the application is manifestly without merit or was not presented in compliance with the deadlines in subsection 80 (2 (a) and (b);or

(b) the application is without standing;

and shall promptly notify the applicant, the procurement entity and any other relevant participants of the dismissal, the reasons for it and that the suspension is lifted.

EXECUTIVE OFFICERS

This table contains information about our current executive officers. Unless otherwise indicated, all positions are with Dana. The first five officers listed are the members of Dana's Policy Committee.

Name and Age	Present Position(s)	Other Positions During Past 5 Years
J. M. Magliochetti (58)	Chairman of the Board of Directors since 2000; Chief Executive Officer since 1999; Chief Operating Officer since 1997; Director and President since 1996	None
R. C. Richter (49)	Chief Financial Officer since 1999; Vice President since 1997	Vice President — Finance and Administration, 1998-99; Vice President – Administration, 1997-98; General Manager – Perfect Circle Sealed Power Europe, 1997; Vice President and General Manager - Perfect Circle Europe, 1994-97
W. J. Carroll (56)	President - Automotive Systems Group since 1997	President — Diversified Products & Distribution, 1996-97; President - Dana Distribution Service Group, 1995-97; President – DTF Trucking, 1985-97; Chairman of the Board of Dana Canada Inc. (a wholly-owned Dana subsidiary), 1995-97; President of Dana Canada Inc., 1993-97
M. A. Franklin, III (53)	President — Dana International & Global Initiatives since 2000	President — Dana International, 1997-2000; President — Dana Europe, 1993-97
E. J. Shultz (56)	Chairman and President — Dana Credit Corporation since 1995	None
R. L. Clayton (40)	President — Heavy Truck Group since 1998	Vice President — Heavy Truck Components Group, 1997-98; Vice President and General Manager - Spicer Heavy Axle & Brake Division, 1996-97; General Manager – Spicer Clutch Division, 1995-96
B. N. Cole (58)	President - Off-Highway Systems Group since 1997	President – Structural Components Group, 1995-97
M. L. DeBacker (54)	Vice President, General Counsel and Secretary since 2001	Vice President, 1994-2001; Assistant General Counsel, 1986-2000
R. R. Filcek (48)	Vice President - Finance since 1999	Executive Vice President and Chief Financial Officer of Dana Credit Corporation, 1995-99
C. F. Heine (48)	President – Engine Systems Group since 1998	President — Dana Asia Pacific, 1996-98

Name and Age	Present Position(s)	Other Positions During Past 5 Years
C. W. Hinde (62)	Vice President and Chief Accounting Officer since 1992; Assistant Treasurer since 1986	None
J. M. Laisure (49)	President – Fluid Systems Group since 2000	Group Vice President — Fluid Systems Group, 1999-2000; Vice President, Modules and Systems Group, 1994-99
T. R. McCormack (50)	President – Automotive Aftermarket Group since 2000	Vice President and General Manager of Wix Division, 1998-2000; President of Wix Worldwide Filtration, 1998-2000; Vice President and General Manager of Dana Distribution Service Division, 1995-98
J. I. Melgar (53)	President – Automotive Axle Products since 2000	Vice President — Automotive Axle Products, 2000; Vice President, Driveshaft Products, 1997-2000; Executive President, Metalcon (a Dana affiliate in Venezuela, now known as Danaven), 1993-97
K. P. Moyer (43)	Vice President and Director of e-Business since 2000	President of Dana Asia Pacific, 1998-2000; President of Capital Group, Dana Commercial Credit Corporation, 1995-1998

Those officers who are designated in Dana’s By-Laws are elected by the Board annually at its first meeting after the annual meeting of shareholders. The others are appointed by the Board from time to time. None of the officers has a family relationship with any other Dana officer or director or an arrangement or understanding with any Dana officer or other person pursuant to which he was elected as an officer.

ITEM 2 — PROPERTIES

As shown in the following table, we have more than 450 manufacturing, distribution and service branch or office facilities worldwide. We own the majority of our manufacturing and larger distribution facilities. We lease certain manufacturing facilities and most of our smaller distribution outlets and financial service branches and offices.

Dana Facilities by Geographic Region

Type of Facility	North America	Europe	South America	Asia/ Pacific	Total
Manufacturing	166	70	39	11	286
Distribution	42	17	39	3	101
Service branches, offices	51	12	5	4	72
Total	259	99	83	18	459

ITEM 3 — LEGAL PROCEEDINGS

We are a party to various pending judicial and administrative proceedings arising in the ordinary course of business. After reviewing the proceedings that are currently pending (including the probable outcomes, reasonably anticipated costs and expenses, availability and limits of our insurance coverage, and our established reserves for uninsured liabilities), we do not believe that any liabilities that may result from these proceedings are reasonably likely to have a material adverse effect on our liquidity, financial condition or results of operations.

Under the rules of the Securities and Exchange Commission, we are required to report certain environmental proceedings involving governmental agencies that are not deemed to be routine proceedings incidental to our business. We are not currently a party to any such proceedings.

ITEM 4 — SUBMISSION OF MATTERS TO A VOTE OF SECURITY HOLDERS

- None -

PART II

ITEM 5 — MARKET FOR REGISTRANT'S COMMON EQUITY AND RELATED STOCKHOLDER MATTERS

Our common stock is listed on the New York Stock Exchange and Pacific Exchange. On February 16, 2001, there were 35,620 shareholders of record.

Dividends have been paid on our common stock every year since 1936. Quarterly dividends have been paid since 1942.

You can find more information in "Shareholders' Investment" on page 50 of our 2000 Annual Report.

ITEM 6 — SELECTED FINANCIAL DATA

You can find selected financial data related to Dana in "Financial Highlights" under "Eleven-Year History" on page 51 of our 2000 Annual Report.

ITEM 7 — MANAGEMENT'S DISCUSSION AND ANALYSIS OF FINANCIAL CONDITION AND RESULTS OF OPERATIONS

You can find "Management's Discussion and Analysis of Financial Condition and Results of Operations" on pages 40-46 of our 2000 Annual Report.

ITEM 7A – QUANTITATIVE AND QUALITATIVE DISCLOSURES ABOUT MARKET RISK

You can find market risk information in "Financial Instruments," "Derivative Financial Instruments" and "Marketable Securities" under "Note 1. Summary of Significant Accounting Policies" on page 27, in "Note 7. Interest Rate Agreements" on page 29 and in "Note 16. Fair Value of Financial Instruments" on page 37 of our 2000 Annual Report.

ITEM 8 — FINANCIAL STATEMENTS AND SUPPLEMENTARY DATA

You can find our financial statements and the report by PricewaterhouseCoopers LLP dated February 2, 2001, on pages 21-39 and "Unaudited Quarterly Financial Information" under "Shareholders' Investment" on page 50 of our 2000 Annual Report.

ITEM 9 — CHANGES IN AND DISAGREEMENTS WITH ACCOUNTANTS ON ACCOUNTING AND FINANCIAL DISCLOSURE

- None -

PART III

ITEM 10 — DIRECTORS AND EXECUTIVE OFFICERS OF THE REGISTRANT

You can find general information about our directors under “Election of Directors” on pages 1-3 in our 2001 Proxy Statement and information about our executive officers in Part I, Item 1 of this Form 10-K.

You can find information about the filing of reports by our directors, officers and 10% stockholders under Section 16(a) of the Securities Exchange Act of 1934 under “Section 16(a) Beneficial Ownership Reporting Compliance” on page 17 in our 2001 Proxy Statement.

ITEM 11 — EXECUTIVE COMPENSATION

You can find information about executive compensation in the following sections of our 2001 Proxy Statement: “Compensation” on page 4 under “The Board and its Committees,” “Executive Compensation” on pages 7-12 and “Compensation Committee Report on Executive Compensation” on pages 13-15.

You can find information about our stock performance under “Comparison of Five-Year Cumulative Total Return” on page 16 of our 2001 Proxy Statement.

ITEM 12 — SECURITY OWNERSHIP OF CERTAIN BENEFICIAL OWNERS AND MANAGEMENT

You can find information about the stock ownership of our directors, officers and 5% stockholders under “Stock Ownership” on pages 5-6 of our 2001 Proxy Statement.

ITEM 13 — CERTAIN RELATIONSHIPS AND RELATED TRANSACTIONS

You can find information about transactions between Dana and our directors, officers and 5% stockholders under “Other Transactions” on pages 16-17 of our 2001 Proxy Statement.

PART IV

ITEM 14 — EXHIBITS, FINANCIAL STATEMENT SCHEDULES, AND REPORTS ON FORM 8-K

			Annual Report Pages
(a)	The following documents are filed as part of this report:		
	(1)	**Financial Statements:**	
		Report of Independent Accountants	21
		Statement of Income for each of the three years in the period ended December 31, 2000	22
		Balance Sheet at December 31, 1999 and 2000	23
		Statement of Cash Flows for each of the three years in the period ended December 31, 2000	24
		Statement of Shareholders' Equity for each of the three years in the period ended December 31, 2000	25
		Notes to Financial Statements	26 - 39
		Unaudited Quarterly Financial Information	50
			10-K Pages
	(2)	**Financial Statement Schedule:**	
		Report of Independent Accountants on Financial Statement Schedule for the three years ended December 31, 2000	13
		Valuation and Qualifying Accounts and Reserves (Schedule II)	14 - 16
		Supplementary Information — Commitments and Contingencies	17
		All other schedules are omitted because they are not applicable or the required information is shown in the financial statements or notes thereto.	
	(3)	**Exhibits listed in the "Exhibit Index"**	18 - 19
		Exhibits Nos. 10-A through 10-K are management contracts or compensatory plans or arrangements required to be filed pursuant to Item 14(c) of this report.	

(b) **Reports on Form 8-K**

None

FISA Call Center

Contact Via (212)-857-1700 or send a secured message at (callcntr@fisa-opa.nyc.gov)

- The call center can help you with the following:
  - Assisting with FMS related issues
  - Identifying your agency's Security Officer contact
- Your Agency's FMS Security Officer can:
  - Submit requests to FISA to establish new FMS IDs
  - Facilitate password resets for FMS
  - Report security issues to the FISA Call Center

Additional Information

- For any questions regarding CIF hours of operation, please contact CIF at **(212)-669-3140** for assistance.

- For all other contract registration questions, please contact BCA at ocamailbox@comptroller.nyc.gov

Site Visit Instructions

Check-in will begin at 10:00 AM (EST) on 07 July 2026 in the lobby of NUWCDIVNPT Building 80, Newport, RI.

The following rules apply for the site visit:

- This will be an Unclassified site visit.
- The site visit will be scripted, no questions will be allowed during the tour.
- Follow-up questions can be submitted via email to amy.k.prisco.civ@us.navy.mil and Michael.N.Ouellette.civ@us.navy.mil
- The use of any type of camera during the site visit is strictly prohibited.
- All interested attendees must pre-register by email to amy.k.prisco.civ@us.navy.mil and Michael.N.Ouellette.civ@us.navy.mil
- In Addition to pre-registration, all participants MUST have an approved Visit Request.
- Instructions for submitting a visit request can be found at the following link:

  http://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Contact-Us/Mandatory-Visit-Request/
- Access to NUWC Division Newport WILL NOT be granted under any circumstances without a valid visit authorization request on file. Please list Michael Ouellette, Code 0223, as the Government POC when submitting the visit request.
- Visitor Control - NUWC Newport Building 80 Lobby outside of NUWC Gate 23 Is open Monday- Friday from 7 a.m. to 3:30 p.m. (except holidays)

NUWC NEWPORT DIVISION VISITOR REQUEST INFORMATION

- A site visit request is **MANDATORY** for all visitors to NUWC Division Newport; government and civilian, regardless of the duration or classification of the visit. Access to NUWC Division Newport will not be granted under any circumstances without a valid visit authorization request (VAR) on file.
- If you can submit your VAR via JPAS, you do not need to send a VAR on company letterhead.
- Due to the number of visit requests received, please allow 7 business days for processing time, whether received by JPAS or on Company Letterhead via FAX or EMAIL.
- Visitors who arrive prior to the 7 working day processing window may not be guaranteed access.
- Please note, all individuals not in possession of a common access card (CAC) or Teslin Card (Retired Military/Dependent ID), will require a DBIDS card for access.
- No unescorted access will be granted without a valid DBIDs card or ID mentioned above.

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NUWCDIVNPT VISITOR REQUEST INFORMATION NEEDED:

<u>**Information must be on Company Letterhead**</u>

1) **Company/Organization Name, Address, Telephone, and FAX Number**
2) **Cage Code**
3) **Visitor(s) Full Name (As it appears on government issued ID – i.e. Driver’s License)**
4) **Visitor(s) Full Social Security Number**
5) **Visitor(s) Date of Birth**
6) **Visitor(s) Place of Birth (City & State)**
   a. If born outside the U.S, you MUST provide a Naturalization Number or US Passport
7) **Visitor(s) Citizenship**
8) **Level of Clearance:** UNCLASSIFIED or as appropriate
   a. SCI Level Access MUST be coordinated SSO to SSO
9) **Do they possess a CAC, Teslin or DBIDs Card? (Yes or No)**
   a. Please specify which visitor(s) have CAC, Retired Military/Dependent ID, DBIDS, or NOT APPLICABLE
10) **NUWCDIVNPT Point of Contact (Sponsor)**
    a. MUST be a NUWC Government Employee
11) **Specific Date(s) of Visit, to include Year**
12) **Purpose of Visit**
13) **Contract Number, if applicable**
    a. If NO Contract Number is provided, then the visit will be for 30 days at the UNCLASSIFIED Level
14) **Authorized Signature:**
    a. Name, Title, Signature, and Date of Requesting Company/Organization Authorizing Official (MUST be aUS Citizen)
    b. Smaller companies that do not have a Security Officer to sign may use another Official or Secretary.
    c. Individuals <u>MUST NOT</u> Sign their own request

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Submit Visitor Request(s) and/or SECNAV form(s) 5512/1 via:

- <u>**JPAS SMO CODE**</u>**:** 666045 (If no access to JPAS, use methods below)
- <u>**EMAIL FORM TO**</u>**:** nuwc_npt_access_control@navy.mil
- <u>**FAX FORM TO**</u>**:** (401) 832-4396

ALL INCOMPLETE VISIT REQUESTS WILL BE DENIED

Please call NUWC visitor control at (401) 832-2152 if you want to verify any visits or status on vetting.

quantity which has to be supplied, specifications of the work to be carried out, time frame in which the work has to be completed, conditions of contract, plans and drawings.

Tender Laws and Policies:

Article 53 of the Indian Constitution conferred executive power of the Union of India to the President. In turn the President confers these powers on Ministry of Finance. These powers are delegated to the subordinate authorities under General Financial Rules, 1947 which were revised in 2005 and then again in the year 2017. Again each State and Union Territory has its own rules, guidelines or legislation relating to government procurement contracts, based on broader principles of GFR 2017. In addition to the GFRs, the Manual for Procurement of Goods, 2024, Manual for Procurement of Services, 2017 and Manual for Procurement of Works, 2019 serve as broad guidelines.

In the case of conflict between the manuals for procurement and any other past instructions issued by the DoE, the General Instructions on Procurement and Project Management, 2021 issued by the Ministry of Finance shall prevail. In addition to the above, tenders are governed by Indian Contract Act, 1872, Sale of Goods Act, 1930. Some States also have their own legislations on Public Procurement such as: the Rajasthan Transparency in Public Procurement Act, 2013; the Punjab Transparency in Public Procurement Act, 2019; the Karnataka Transparency in public procurement Act, 1999; and The Tamil Nadu Transparency in Tenders Act, 1998.

Notice Inviting Tender:

It is a formal announcement, typically published by a any organization, Government or any entity inviting bids for a specific project, service or supply of goods are services. In India, Government Contracts and tenders are primarily dealt by the Indian Contract At, 1872 and Sale of Goods Act, 1930. A tender is an invitation to offer or inviting bids or quotes from the other party for the supply of goods or services or for construction of buildings.

In N.G. Projects Ltd., v. M/S Vinod Kumar Jain & Ors (2022) 6 SCC 127, it was held that the State cannot reject a bid on the ground of minor deviations or discrepancies that do not affect the substance of the bid or the competitiveness of the tender process.

In Michigan Rubber Ltd., v. State of Karnataka (2012) 8 SCC 216, the Supreme Court upheld the decision of the High Court which dismissed a writ petition filed by a bidder who challenged his disqualification technical grounds.

In Balaji Ventures Pvt., Ltd., v. Maharashtra State Power Generation Company Ltd., (2022) Live Law SC 295 It was held that a bidder who participates in a tender process with full knowledge of its terms and conditions is bound by them and cannot later complain about them. In Afcons Infrastructure Ltd., & anr v. Nagpur Metro Rail Corporation Ltd., & Ors (2016) 16 SCC 818 It was held that the State has the authority to negotiate a price reduction with the lowest bidder and that such a negotiation does not constitute a modification of the tender document or a departure from the tender process.

In Utflex Ltd., v. Govt. of Tamil Nadu & Ors 2021 SCC Online SC 738 The Supreme Court held that interference with government tenders makes the State and its citizens suffer twice, as it delays the execution of public projects and increases their cost.

Earnest Money Deposit and Security Deposit:

In tendering, both EMD and Security Deposit serve as financial safeguards, but they differ in their purpose and timing. EMD demonstrates a bidder's serious intent and commitment to a tender, while the security deposit ensures performance and compliance with the contract terms. In case of breach by the bidder, the owner can forfeit the EMD. With reference to the Security Deposit it should be adjusted towards the loss.

Conclusion:

Like any other party Government is also liable to pay damages to the third party in case of breach of contract and third party is also liable to pay damages to the Government in case breach is committed by third party.

4. Change of Address; Discovery of Invalid Fax Number or Email Address. A change of address, fax number, email address, telephone number, or person to receive notice may be made by either party by notice given to the other party. At any time that a party discovers that the other party has provided it a fax number or email address that is not valid, the discovering party shall provide notice of the discovery to the other party, so that it can substitute a valid fax number or email address.

5. Date Notice Deemed Given. If a notice is sent by United States mail, it is deemed complete upon actual delivery or on the third day following the day on which it is deposited with the United States Postal Service, whichever occurs first. Notice is deemed given when both subsection (1) and subsection (2) have been complied with.

6. When Undeliverable Notice Is Deemed Sent. If a notice is undeliverable because the address or other information provided to the sender by the other party is incorrect, incomplete, or out of date, the notice will be deemed sent on the date that the sender attempts to deliver by fax or email, or the date it places the notice in the custody of UPS, Federal Express, a designated delivery service authorized pursuant to 26 U.S.C. 7502(f)(2), or the U. S. Postal Service for certified United States mail, return receipt requested. If a fax is not received because the recipient's fax number is busy on three attempts to fax that are at least ten minutes apart during a 4-hour period, the fax will be deemed undeliverable.

7. Addresses. Subject to change pursuant to subsection (4), the addresses for these notices, are:

For the City:

Sean Egan
Director, Department of Transportation
101 City Hall Plaza
Durham, NC 27701
Fax number is (919)560-4561
Email: sean.egan@durhamnc.gov

For Consultant:

[CONSULTANT NAME]
[NAME OF FIRM]
[CONSULTANT ADDRESS]
[CITY], [STATE] [ZIP CODE]
Phone Number: XXX-XXX-XXXX
Email: [EMAIL ADDRESS]

F. DISPUTE RESOLUTION

1. The Consultant and City agree to negotiate all disputes between them in good faith for a period of 30 days from the date of notice prior to exercising their rights under Section F.2 below.